

DEED OF LEASE

**AP CHANTILLY MEADOWS LLC,
a Commonwealth of Virginia limited liability company**

LANDLORD

and

**THE RED GATE GROUP LTD.,
a Commonwealth of Virginia Corporation,**

TENANT

**4795 Meadow Wood Lane,
Chantilly, Fairfax County, Virginia**

Date: 3/27, 2017

4795 Meadow Wood Lane
_____, 2017
AP Chantilly Meadows LLC – Red Gate Group

Landlord's Initials: _____
Tenant's Initials: _____

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DEED OF LEASE

(Meadows IV, 4795 Meadow Wood Lane, Chantilly, Fairfax County, Virginia)

THIS DEED OF LEASE (this "**Lease**") is made and entered into this _____ day of February, 2017, by and between (i) **AP CHANTILLY MEADOWS LLC**, a Virginia limited liability company ("**Landlord**"), and (ii) The Red Gate Group Ltd., a Virginia corporation, ("**Tenant**").

In consideration of the promises set forth in this Lease, and other valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord and Tenant agree as follows:

1. **Definitions.** Certain terms used in this Lease are defined below:

A. **Advance Rent:** Six Thousand Five Hundred Sixty-Two and 50/100 Dollars (\$6,562.50), representing the Basic Rent for the first full calendar month of the Term after the Lease Commencement Date (subject to the Basic Rent Abatement, as defined below), which Tenant shall pay to Landlord upon the execution of this Lease in the form of cash or other current funds or a check subject to collection.

B. **Basic Rent:** For the first full twelve (12) calendar months of the Term, the sum of Seventy-Eight Thousand Seven Hundred-Fifty and No/100 Dollars (\$78,750.00), payable in advance in equal monthly installments of Six Thousand Five Hundred Sixty-Two and 50/100 Dollars (\$6,562.50). For the sake of clarity, annual rent for the first full twelve (12) calendar months of the Term is calculated at \$22.50 per rentable square foot of the Premises. Basic Rent is subject to annual adjustment pursuant to Section 4.B.

C. **Building:** The office building located at 4795 Meadow Wood Lane, Chantilly, Fairfax County, Virginia 20151, including all surface parking areas serving the building, the land on which the building is constructed (the "**Land**") and all appurtenances thereto.

D. **Building Rentable Area:** The total rentable area in the Building, as determined by Landlord's architect ("**Landlord's Architect**") in accordance with the Building Owners and Managers Association Office Buildings: Standard Methods of Measurement, (ANSI/BOMA Z65.1-2010) "Method B" method of measurement (the "**BOMA Measurement Method**"), which is estimated at approximately One Hundred Forty-Six Thousand Four Hundred Forty-Four (146,444) square feet, as adjusted by Landlord from time to time for changes in the physical size of the Building, whether such changes in size are due to an addition to or a sale or conveyance of a portion of the Building.

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E. **Business Days:** All days except Saturdays, Sundays and the following legal holidays: New Year's Day, Martin Luther King's Birthday, President's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, and Christmas Day and any other legal holidays recognized by the Federal government or the Commonwealth of Virginia.

F. **Date of Tender:** The date Landlord tenders possession of the Premises to Tenant, as specified in Section 3.E.

G. **Landlord's Notice Address:** c/o AAFMAA Property LLC, Manager, 1856 Old Reston Ave., Suite 300, Reston, VA 20190, Attn: Mr. Charles B. Betancourt, Chief Operating Officer.

H. **Lease Commencement Date:** As specified in Section 3.E.

I. **Lease Year:** The first "Lease Year" shall begin on the Lease Commencement Date. If the Lease Commencement Date is the first day of a month, the first Lease Year will end twelve (12) full calendar months after the Lease Commencement Date. If the Lease Commencement Date is a day other than the first day of a month, the first Lease Year will end on the last day of the month in which the first anniversary of the Lease Commencement Date occurs. Each subsequent Lease Year shall commence on the day immediately following the last day of the preceding Lease Year, and shall continue for a period of twelve (12) full calendar months.

J. **Leasing Broker(s):** Avison Young.

K. **Permitted Uses:** General office use and no other use.

L. **Premises:** The Premises contain an agreed upon Three Thousand Five Hundred (3,500) rentable square feet, located on the first floor of the west wing the Building, and having a street address of 4795 Meadow Wood Lane, Chantilly, Fairfax County, Virginia. The Premises are shown on the floor plan attached as Exhibit A to this Lease. The Premises do not include the roof, the exterior surfaces of exterior walls, or the air space above the Building or any risers or conduits located within the Building or on the Land, which are reserved for Landlord's exclusive use.

M. **Rentable Area:** The rentable area of the Premises, which is agreed to be Three Thousand Five Hundred (3,500) rentable square feet. If Landlord's Architect determines, after the substantial completion of Tenant's Work, that the exact number of rentable square feet within the Premises is other than as set forth in this Section 1.L, then this Section shall be modified by amendment to this Lease. Such determination shall be made by Landlord's Architect in accordance with the BOMA Measurement Method.

N. **Security Deposit:** Six Thousand Five Hundred Sixty-Two and 50/100

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Dollars (\$6,562.50), which Tenant shall pay to Landlord upon the execution of this Lease.

O. Intentionally Omitted.

P. Intentionally Omitted.

Q. Tenant's Notice Address: 4455 Brookfield Corporate Drive #106, Chantilly, VA 20151 before the Lease Commencement Date, or the Premises after the Lease Commencement Date.

R. Tenant's Proportionate Share: Two and Thirty-Nine hundredths Percent (2.390%), which equals the percentage that the Rentable Area bears to the Building Rentable Area. If the Rentable Area changes, Tenant's Proportionate Share will be adjusted accordingly.

S. Tenant's Work: As specified in Section 3.C.

T. Term: The period commencing on the Lease Commencement Date (or the first (1st) day of the calendar month next following the Lease Commencement Date, if the Lease Commencement Date occurs on other than the first day of the month) and ending Sixty-Five (65) full calendar months after the Lease Commencement Date, unless sooner terminated pursuant to this Lease.

2. Lease of the Premises; Tenant's Acceptance of Premises.

A. Subject to the terms and provisions of this Lease, Landlord leases to Tenant and Tenant leases from Landlord the Premises for the Term.

B. By occupying the Premises, Tenant accepts them in their present condition and agrees that Landlord shall not be required to make any repairs or improvements other than as provided in Sections 3 and 10.B.

C. On the Date of Tender, Tenant shall execute and deliver to Landlord a Certificate of Acceptance in the form attached to this Lease as Exhibit B.

3. Completion of Premises.

A. Landlord, at Landlord's sole cost and expense (except as set forth in Section 3.D with respect to change orders or change directives), will complete construction of the Premises in accordance with the plans and specifications to be prepared by Landlord's Architect (which plans shall be prepared at Landlord's sole costs and expense) and approved by Tenant in conformity with this Section 3 and, subject to "Force Majeure Delays" and "Tenant Delays" (as such terms are defined below), in conformity with the completion schedule attached to this Lease as Exhibit F (the "Completion Schedule"), and with regard to improvements or materials not shown on the Plans (as defined below), in accordance with building standard

specifications, materials and finishes set forth on Exhibit G (the "**Building Standard Specifications**"). All plans and specifications for the Premises, including those to be prepared pursuant to this Section 3, that have been approved by Landlord and Tenant in conformity with this Section 3, are referred to collectively as the "**Plans**." Landlord and Tenant agree that the Plans shall include the finish notes set forth on Exhibit H (the "**Finish Notes**"). To the extent of a conflict between the Finish Notes and the Building Standard Specifications, the Finish Notes shall control. Tenant agrees to work expeditiously and with due diligence with Landlord and Landlord's Architect and Landlord's consultants to complete and approve the Plans. Tenant shall furnish to Landlord and Landlord's Architect any additional information needed by Landlord or Landlord's Architect to prepare the Plans, to order materials or to obtain bids for the Premises in conformity with the requirements of the Completion Schedule, and if not otherwise specified in the Completion Schedule, within five (5) Business Days after Landlord's written request therefor. Notwithstanding anything herein to the contrary, Tenant shall be solely responsible for installing all communications cabling and wiring and providing all furniture, fixtures and equipment.

(1) "**Force Majeure Delay**" means a delay caused by any event that is beyond the control of Landlord or its employees, agents or contractors, such as, by way of illustration but not limitation, strikes, lockouts or other labor or industrial disturbance, natural catastrophes, governmental restrictions, civil disturbance, acts of public enemy, civil commotions, fire or other casualty, adverse weather conditions, future order of any government, court or regulatory body claiming jurisdiction, war, riot, sabotage, blockage, embargo, lightning, earthquake, hurricane, tornado, flood, washout, explosion, moratorium or other unusual delay in obtaining necessary governmental approvals, including, but not limited to site and building permits and related inspections.

(2) "**Tenant Delay**" means (a) any delay (other than that caused by a Force Majeure Delay) by Tenant in meeting its obligations under this Section 3; (b) any delay in the commencement of construction caused by modifications to the Plans requested by Tenant pursuant to Section 3.D; (c) any delay in construction caused by a change order or other change directive requested by Tenant; (d) any delay in completion of the Tenant's Work for any portion of the Premises resulting from Tenant's specification and/or selection of any items for the Premises that require a long lead time that is inconsistent with the applicable Completion Schedule in Exhibit F ("**Long Lead Items**"); or (e) any other delay (other than that caused by a Force Majeure Delay) in completing Tenant's Work which is caused by Tenant.

B. Tenant shall meet with Landlord and Landlord's Architect to discuss the layout of the Premises in conformity with the time frames specified in the Completion Schedule. Landlord's Architect, at Landlord's sole cost and expense, with reasonable promptness, shall prepare architectural layout drawings for the Premises (the "**Space Layout**"), and shall submit the Space Layout to Tenant for its approval. Tenant shall either approve the Space Layout or advise the Space Planner of the changes to be made in conformity with the requirements of the Completion Schedule.

C. Tenant shall submit all of its power and lighting requirements to Landlord's Architect in conformity with the requirements of the Completion Schedule. Following receipt of those requirements from Tenant, Landlord's Architect, at Landlord's sole cost and expense, will prepare a power and lighting plan (the "**Lighting Plan**") for the Premises, and will submit the Lighting Plan to Tenant for its approval. Tenant shall either approve the Lighting Plan or advise the Space Planner of the changes to be made in conformity with the requirements of the Completion Schedule. Following approval of the Lighting Plan or completion of the revisions requested by Tenant, Landlord's Architect, at Landlord's sole cost and expense, with reasonable promptness, shall prepare architectural working drawings and specifications, including mechanical and electrical working drawings (collectively, the "**Working Drawings**"), based upon the Space Layout and Lighting Plan.

D. After the Plans have been prepared and approved pursuant to this Section 3, Landlord, at Landlord's sole cost and expense, shall complete the Premises in accordance with the Plans (collectively, "**Tenant's Work**") for Tenant's use and occupancy. Landlord shall, in its sole discretion, select the general contractor to perform the Tenant's Work ("**Leasehold Contractor**"). Tenant's Work shall be performed by Landlord substantially in accordance with the Plans and the Building Standard Specifications and shall be performed in a good and workmanlike manner. Tenant's Work shall include any change orders or change directives relating to Tenant's Work to the extent that the scope of work and associated costs therefor are mutually approved by Landlord and Tenant. Upon Substantial Completion of Tenant's Work in accordance with Section 3.H, Landlord will tender possession of the Premises to Tenant.

E. The "**Lease Commencement Date**" shall be the earlier of (1) the date Tenant takes possession and occupies the Premises; or (2) the date Landlord tenders possession of the Premises to Tenant after having Substantially Completed Tenant's Work (as defined in paragraph (H) below) (the "**Date of Tender**"); provided, however, that if Tenant has committed a Tenant Delay, then the Lease Commencement Date shall be the date (as determined by Landlord's Architect) that the Date of Tender would have occurred but for Tenant Delay, and the period of time during which Landlord is required to complete Tenant's Work shall be extended for a period of time equal to the number of days of such delay. Landlord presently anticipates that, provided Tenant timely complies with all of its obligations, the Tenant's Work will be Substantially Completed on or before July 1, 2017. Landlord shall endeavor to provide Tenant with reasonable advance notice of the Date of Tender. Notwithstanding anything contained in this Lease to the contrary, Landlord shall allow Tenant access to the Premises at least thirty (30) days prior to the Date of Tender so that Tenant may install its fixtures, furniture and equipment (including, without limitation, IT cabling) in the Premises. Tenant's contractors shall be permitted to work simultaneously, and in coordination, with Landlord and Landlord's contractors, provided, however, that such work shall not unreasonably interfere with or delay the progress of Tenant's Work. Landlord's failure to advise Tenant of the anticipated Date of Tender shall not alter or delay the Date of Tender, the intention being that it shall be the Tenant's obligation to monitor construction progress and make inquiry of Landlord to determine the anticipated Date of Tender. Landlord will make available to Tenant weekly updates of the progress of Tenant's Work.

Tenant's Work shall be deemed approved by Tenant in all respects upon the Date of Tender except for "Punchlist Items" (as defined below). In the event that the Date of Tender has not occurred by September 30, 2017 (the "**Delivery Deadline**") unless due in whole or in part to Force Majeure Delay or Tenant Delay (unless the Date of Tender would have been after the Delivery Deadline even taking into account such Tenant Delay), Tenant may terminate this Lease by providing written notice to Landlord within ten (10) Business Days after the Delivery Deadline and after which Tenant shall have no further obligations with respect to this Lease; provided that (i) if Tenant sends a termination notice, but the Date of Tender occur within such ten (10) Business Day period, then Tenant's termination notice shall be void and of no force or effect; and (ii) the Delivery Deadline shall be extended by one day for each day that Tenant's Work is prevented or delayed as a result of any Tenant Delay or Force Majeure Delay.

F. Before the Date of Tender, Landlord shall direct the Leasehold Contractor to walk through the Premises with the Leasehold Architect and Tenant and prepare a punchlist setting forth any defects or incomplete work. The punchlist shall list incomplete, minor, or insubstantial details of construction, necessary mechanical adjustments, and needed finishing touches that are reasonably approved by Landlord ("**Punchlist Items**"). Landlord will use commercially reasonable efforts to complete the Punchlist Items within ninety (90) days after Landlord's receipt of the same from Tenant. Notwithstanding anything contained herein to the contrary, taking possession of the Premises by Tenant shall not be deemed an acceptance by Tenant of any latent defects in Tenant's Work that would not otherwise be discoverable during the preparation of the Punchlist Items, which latent defects Landlord agrees to correct within a reasonable time after notification thereof.

G. Following the date on which Landlord obtains all final building inspection approvals for the Tenant's Work, Landlord shall apply for a permit from the jurisdiction in which the Building is located to occupy and use the Premises (the "**Occupancy Permit**"). The cost of applying for and obtaining the Occupancy Permit shall be at Landlord's sole cost and expense. Tenant will cooperate with Landlord, and shall comply with the requirements of all applicable governmental authorities, as necessary to obtain the Occupancy Permit. Landlord will send a copy of the Occupancy Permit to Tenant after Landlord receives the same.

H. The Tenant's Work shall be deemed to be "**Substantially Complete**" when (i) the Tenant's Work is complete (other than Punchlist Items), as reasonably determined by Landlord's Architect, and (ii) the Occupancy Permit (as defined below) has been issued. Notwithstanding the foregoing, if an Occupancy Permit has not been issued on account of the fact that Tenant's furniture, fixtures, or equipment and/or any cabling or wiring thereto has not been fully or properly installed, or any other matter that is Tenant's responsibility to perform, then the Tenant's Work shall be deemed Substantially Complete on the date an Occupancy Permit would have been issued for a standard office design and layout assuming Tenant's furniture, fixtures, and equipment (and cabling and wiring) had been properly installed and all other obligations of Tenant had been satisfied, as reasonably determined by Landlord.

4. Rent and Additional Charges.

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A. Tenant shall pay the Basic Rent for each Lease Year in equal monthly installments in advance on the first day of each month during the Term, commencing on the Lease Commencement Date. If the Lease Commencement Date is a date other than the first day of a month, the Basic Rent for that month shall be prorated and paid based upon the monthly Basic Rent specified in Section 1.B and the number of days in such month after and including the Lease Commencement Date. The Advance Rent shall be credited to the first full monthly installment of Basic Rent due under this Lease. Any difference between the Advance Rent and the first full monthly installment of Basic Rent shall be adjusted as of the Lease Commencement Date, and paid by Tenant with, or credited by Landlord against, the next monthly installment of Basic Rent payable by Tenant, as applicable.

B. At the commencement of the second Lease Year, and effective simultaneously with such date, the annual Basic Rent payable by Tenant pursuant to Section 1.B (and the monthly installments thereof) shall be increased by an amount equal to Two and 75/100 Percent (2.75%). Thereafter, at the commencement of each Lease Year during the Term after the second Lease Year, and effective simultaneously with such dates, the annual Basic Rent (and the monthly installments thereof) shall be increased by an amount equal to Two and 75/100 Percent (2.75%) of the escalated Basic Rent then in effect.

C. The Basic Rent and all other amounts payable by Tenant to Landlord under this Lease, including late fees, interest and other charges specified in this Lease (collectively, "**Additional Charges**") shall be paid promptly when due, in lawful money of the United States, without notice or demand and without deduction, diminution, abatement, counterclaim, recoupment, reduction or setoff of any amount or for any reason whatsoever, to Landlord at Landlord's Notice Address or at such other address as Landlord may designate in writing. All Additional Charges shall be deemed to be additional rent, and all remedies applicable to nonpayment of Basic Rent shall be applicable to nonpayment of Additional Charges.

D. No payment by Tenant or receipt by Landlord of any lesser amount than the monthly installment of Basic Rent or other Additional Charge herein stipulated shall be deemed to be other than on account of the earliest stipulated installment of Basic Rent or Additional Charge; nor shall any endorsement or statement on any check or letter be deemed an accord and satisfaction. Landlord may accept any check or payment without prejudice to Landlord's right to recover the balance due or to pursue any other remedy available to Landlord.

E. In consideration of Tenant's full, prompt and faithful observance and performance of its obligations under this Lease and in reliance thereupon, Landlord agrees that, notwithstanding anything to the contrary contained in this Section 4, Landlord shall waive Tenant's obligation to pay Basic Rent for the Premises for (i) the first three full calendar months after the Lease Commencement Date and (ii) the thirteenth and fourteenth full calendar months following the Lease Commencement Date (collectively, the "**Basic Rent Abatement**"). Except with respect to the Basic Rent Abatement pursuant to this Section 4.E, Tenant shall pay Basic Rent for the entire Premises in conformity with the terms of this Lease. Notwithstanding the

foregoing provisions of this Section 4.E, if Tenant defaults under this Lease at any time during the period that Tenant is entitled to receive the Basic Rent Abatement pursuant to this Section 4.E and such default continues beyond any applicable notice and cure period specified herein, Basic Rent Abatement shall be revoked, in which case, all Basic Annual Rent otherwise due and payable by Tenant absent the Basic Rent Abatement shall become immediately due and payable to Landlord on demand.

5. Operating Expense Increases.

A. Commencing on January 1, 2018, Tenant shall pay to Landlord, as additional rent, Tenant's Proportionate Share of all "Operating Expense Increases" (as defined below) incurred during each calendar year of the Term.

(1) The excess of "Operating Expenses" (as defined below) for a particular calendar year over the "Operating Expense Base" (as defined below) is referred to in this Lease as "**Operating Expense Increases.**"

(2) The "**Operating Expense Base**" means the total Operating Expenses incurred in calendar year 2017 (the "**Base Year**") in connection with the total Building Rentable Area.

(3) Tenant's Proportionate Share of Operating Expense Increases for the calendar years in which the Term commences and in which the Term terminates shall be apportioned based on the number of days in such calendar year after such commencement or prior to such termination.

B. Landlord shall annually notify Tenant of Landlord's estimate of Tenant's Proportionate Share of Operating Expense Increases for each calendar year, and Tenant shall pay such amount in equal monthly installments in advance on the first day of each month after the date of such notice until Tenant's Proportionate Share of Operating Expense Increases is again adjusted annually by Landlord. Landlord shall annually submit to Tenant a statement showing Tenant's actual Proportionate Share of Operating Expense Increases for the previous calendar year, the amount thereof paid by Tenant, and the balance due or overpayment. The balance due shall be paid by Tenant to Landlord, or the overpayment shall be paid by Landlord to Tenant (or, at Landlord's option, credited against the next monthly installment of Basic Rent thereafter payable by Tenant), without interest, within thirty (30) days after the date of the statement. Tenant may, upon reasonable notice given within ninety (90) days after receipt of the statement, examine Landlord's books and records at the office of Landlord during ordinary business hours not more than once each year to verify the matters in the statement for the immediately preceding year, provided that such examination shall not excuse or delay the timely payment of Tenant's Proportionate Share of Operating Expense Increases.

C. In the event that the average occupancy rate of the Building is less than ninety-five percent (95%) for the Base Year or any calendar year during the Term, then, for

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purposes of calculating Operating Expense Increases, the Operating Expenses for the Base Year or such calendar year during the Term, as applicable, shall be increased by the additional costs and expenses that Landlord reasonably estimates would have been incurred if during the Base Year or such calendar year the average occupancy rate had been ninety-five percent (95%). If, during the Base Year or any calendar year during the Term, any tenant of the Building does not use a service provided by Landlord to or for the benefit of Tenant (the "**Partially Utilized Service(s)**"), then, for purposes of calculating Operating Expense Increases, the component of Operating Expenses attributable to such Partially Utilized Service(s) shall be deemed to be the amount which Landlord reasonably estimates would have been incurred for the Base Year or such calendar year if all of the office tenants of the Building had used the Partially Utilized Service(s), based upon an average occupancy rate of ninety-five percent (95%) for the Base Year or such calendar year or the actual occupancy rate if higher than ninety-five percent (95%).

D. "**Operating Expenses**" means those reasonable costs and expenses that are incurred by Landlord in connection with the ownership, management, operation, servicing, repair and maintenance of the Premises and the Building, including wages, salaries and other compensation, including payroll taxes, vacation, welfare and pension benefits and other fringe benefits paid to employees (including a building concierge, if applicable), and fees paid to independent contractors or agents of Landlord engaged in the operation, repair, management or maintenance of the Building; "Real Estate Taxes" (as defined below); sewer, water, electricity and other utility charges, including water and sewer rents; telephone service; painting of public or other common areas of the Building; premiums for fire and casualty, liability, business interruption, workmen's compensation, sprinkler, water damage and other insurance; repairs and maintenance to the Building, including the Building's access control system; the cost of operating any shared facilities located within the Building which are made available to all tenants (such as a health club and locker rooms); management fees (whether or not paid to any person, entity or business association having an interest in or under common ownership with Landlord), provided that such fees do not exceed the average management fees paid by first class office buildings located in the Virginia Route 28 South/Chantilly submarket; the cost of supplies, tools, materials, equipment and labor for Building repairs and maintenance that, under generally-accepted accounting principles consistently applied, would not be capitalized (except as specified below in Section 5(D)(1)); costs incurred for inspection and servicing of the Building, including all outside service contracts in connection with the maintenance of the Building, including janitorial and window cleaning, rubbish removal (including waste product recycling), exterminating, detection and access control, snow and ice removal, parking lot lighting and line painting, landscaping, tree and shrubbery maintenance, elevator, boiler, HVAC, electrical, plumbing and mechanical equipment, and the cost of materials, tools, supplies, equipment and labor used for inspection and servicing; uniforms and dry cleaning for maintenance personnel; capital improvements (to the extent provided below in Section 5.D(1)); electric bulbs and fluorescent tubes; reasonable legal and accounting fees and expenses (except as set forth in Section 5.D(3)); fees, charges, and assessments fees imposed by the Westfields Business Owners Association.

(1) Notwithstanding anything to the contrary set forth in this Lease,

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the following costs incurred by Landlord may be included in Operating Expenses based upon a reasonable amortization schedule determined by Landlord: (a) capital expenditures made by Landlord in respect of the Building which Landlord believes in good faith will result in a savings of Operating Expenses (such as installing energy conservation or labor-saving devices); (b) capital expenditures made by Landlord in respect of the Building which are required to comply with any "Legal Requirements" (as defined below) becoming effective after the substantial completion of the original construction of the Building; and (c) the costs of any supplies, tools, materials, equipment or labor acquired by Landlord for Building operation, repairs or maintenance, which, under generally-accepted accounting principles consistently applied, would be capitalized.

(2) Operating Expenses shall not include: financing or mortgage costs; ground lease rental or services provided to a particular tenant and not to all tenants; advertising for vacant space; brokerage or leasing commissions; executive salaries; the cost of tenant improvements; or legal fees and expenses for leasing vacant space in the Building, enforcing Landlord's rights under occupancy leases with tenants of the Building or otherwise relating to disputes with tenants of the Building.

(3) "Real Estate Taxes" means (a) all general and special taxes and assessments and other similar charges due with respect to the Building, the Land or any appurtenant land (including, without limitation, Route 28 assessments, all assessments for schools, public betterments and general or local improvements, licensing taxes imposed by any governmental authority having jurisdiction over the Building or the Land, water rates and charges, fire hydrant taxes, street lighting taxes and other governmental charges, general and special, ordinary and extraordinary, unforeseen as well as foreseen, of any kind and nature whatsoever which shall, during the Term, be laid, assessed, levied or imposed upon or become due and payable and a lien upon the Building and/or the Land); (b) personal property taxes levied or assessed on Landlord's property used in connection with the operation, maintenance and repair of the Building; (c) franchise taxes payable by Landlord, to the extent calculated based on gross rents or gross income of the Building; and (d) all expenses incurred by Landlord (including reasonable legal fees and expenses, expert witness fees and similar costs) in connection with any contest or appeal of any of such taxes or assessments.

(a) Real Estate Taxes shall not include any inheritance, estate, succession, transfer, gift, franchise (except as specified above in Section 5.D(3)), corporation, income or profit tax or capital levy payable by Landlord except to the extent that any such tax or levy is imposed in lieu of or as a substitute for any Real Estate Taxes.

(b) Real Estate Taxes that are being contested by Landlord shall be included for purposes of determining Tenant's obligations under this Section 5. If Landlord receives a refund of any Real Estate Taxes, such refund (net of any associated costs and expenses incurred by Landlord) shall be credited against Operating Expenses incurred during the year in which it is received by Landlord. Landlord shall have no obligation to contest the levying or imposition of any Real Estate Taxes and may, in its sole discretion, compromise or

abandon any such contest.

(4) **"Legal Requirements"** means (a) all laws, statutes, ordinances, orders, rules, regulations and requirements of all federal, state and municipal governments, and the appropriate agencies, officers, departments, boards and commissions thereof, and the board of fire underwriters and/or the fire insurance rating organization or similar organization performing the same or similar functions, whether now or hereafter in force, applicable to the Premises or the Building, (b) notices from Landlord's "Mortgagee" (as defined below) or prospective Mortgagee, as to the manner of use or occupancy or the maintenance, repair or condition of the Premises or the Building, and (c) the usual and customary requirements of the carriers of all hazard and boiler insurance policies maintained by Landlord on the Building. **"Mortgagee"** means the holder or beneficiary of, or any trustee under, any mortgage, deed of trust or other security instrument of record creating an interest in or affecting title to the Building and/or the Land, and any and all renewals, modifications, consolidations or extensions of any such instrument (collectively, the **"Mortgage"**).

6. **Late Charges.** Any payment of Basic Rent or Additional Charges to be made by Tenant under this Lease which is not received within seven (7) days after its due date (1) shall be subject to a late charge equal to five percent (5%) of such unpaid sum (the **"Late Fee"**), the parties hereby agreeing that Landlord's actual damages as a result of Tenant's default in the timely payment of Basic Rent or Additional Charges would be difficult to determine, and that the Late Fee is a fair and reasonable estimate of Landlord's probable loss as a result of such a default by Tenant; and (2) shall bear interest (**"Interest"**) from the due date until paid at the lesser of (a) the rate of eighteen percent (18%) per annum (1-1/2% per month); or (b) the maximum rate allowed by law, to cover Landlord's administrative and overhead expenses of processing late payments. Tenant shall pay Landlord a \$100.00 fee for each check received by Landlord which is returned by Tenant's bank unpaid (the **"Returned Check Fee"**). Landlord and Tenant agree that such charges are not, and shall not be deemed to be, a penalty, and that the payment of such charges shall not excuse the untimely payment of rent. In addition to the payment of any Interest, Late Fee and/or Returned Check Fee, Tenant shall reimburse Landlord for reasonable attorney's fees and legal expenses, if any, and all other costs of collection incurred by Landlord by reason of any such monetary default by Tenant.

7. **Common Areas.** Throughout the Term, Tenant and its agents, employees and invitees shall have the nonexclusive right, in common with others designated by Landlord, to use the common areas of the Building and the Land for their intended and normal purposes. Common areas include the public lobbies, elevators, corridors, entrances, passageways, doors, doorways, stairways, or other public portions of the Building, the toilet rooms in public areas of multi-tenant floors in the Building and the parking areas, sidewalks, driveways and other similar public areas and access ways located on the Land. Landlord may at any time after reasonable notice to Tenant, but without Tenant's consent, change, eliminate or reconfigure the common areas provided that the same does not unreasonably and materially obstruct Tenant's access to or use of the Premises.

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8. Management, Services and Utilities.

A. Throughout the Term, Landlord agrees that the Building will be managed, operated and maintained and services provided in a manner befitting comparable class office buildings located in the Virginia Route 28 South/Chantilly submarket, and that, subject to the Legal Requirements, Landlord will furnish to Tenant the following services, the cost of which will be included in Operating Expenses:

(1) normal and usual electricity in reasonable amounts necessary for lighting purposes and normal office use, including the operation of ordinary office equipment such as word processors, data processors, personal computers, copy machines and other equipment which consumes comparable amounts of electricity;

(2) adequate supplies for toilet rooms located in public areas of the Building;

(3) normal and usual cleaning and janitorial services after 6:00 p.m. on Business Days in accordance with the standards set forth in Exhibit C attached to this Lease;

(4) hot and cold running water in the toilet rooms;

(5) heating and air-conditioning to the Premises between the hours of 7:00 a.m. and 6:00 p.m. on Business Days and between the hours of 8:00 a.m. and 1:00 p.m. on Saturdays, unless Saturday is a legal holiday, during such seasons of the year when such services are normally and usually provided in comparable class office buildings located in the Virginia Route 28 South/Chantilly submarket;

(6) automatically operated elevator facilities twenty-four (24) hours a day, seven (7) days a week throughout the Term, subject to the operation of the after-hours building access control system, if any;

(7) all electric bulbs, fluorescent tubes and ballasts in building standard light fixtures in the public areas of the Building;

(8) a reasonable number (as determined by Landlord) of keys for the Premises and fifteen (15) access control cards for the Building, if applicable, at no cost to Tenant; but all additional keys and access control cards, including replacements for lost keys and access control cards, shall be issued only upon the payment of Landlord's actual cost for each additional or replacement key and access control card;

(9) access to the Building and the Premises twenty-four (24) hours per day, three hundred sixty-five (365) days per year, including holidays, subject to the operation of the after-hours Building access control system;

(10) extermination and pest control, when necessary;

(11) maintenance of common areas in a manner similar to other comparable class office buildings located in the Virginia Route 28 South/Chantilly submarket, including cleaning, HVAC, illumination, snow shoveling, de-icing, repairs, replacements and landscaping; and

(12) a single building-standard sign with Tenant's name and suite number for Tenant adjacent to the suite entry of the Premises and adjacent to the exterior dedicated entrance to the Premises, if any, and one (1) directory strip in the Building's main lobby directory.

B. Tenant's use of electricity shall not at any time exceed the capacity of any of the electrical conductors and equipment serving the Premises. Tenant shall be obligated to pay all charges incurred by Landlord in connection with any excessive consumption of electricity by Tenant, as determined by Landlord in its sole discretion, and the cost of any additional wiring and other work which may be required for the operation by Tenant of any equipment requiring excessive electricity. Tenant shall give written notice to Landlord whenever Tenant shall connect to the Building electrical distribution system any equipment other than lamps, ordinary office equipment and similar small and low electrical consumption office machines. Landlord may require that special, high electricity consumption installations of Tenant be separately sub-metered for electrical consumption at Tenant's cost.

C. Upon reasonable notice, Landlord, at Tenant's expense, shall provide heat and air-conditioning at times in addition to those specified in Section 8.A(5). Landlord shall charge Tenant for after-hours HVAC service based upon Landlord's then-current schedule of charges therefor. Landlord's current charge for after-hours HVAC service is Forty-Five and No/100 Dollars (\$45.00) per hour.

D. Landlord reserves the right to stop the service of heating, air-conditioning, ventilating, elevator, plumbing, electricity or other mechanical systems or facilities in the Building, if necessary by reason of accident or emergency, or for repairs or improvements which, in the judgment of Landlord, are desirable or necessary, until said repairs or improvements shall have been completed. Except in cases of emergency repairs, Landlord will give Tenant reasonable advance written notice of any contemplated stoppage of any such systems or facilities pursuant to the foregoing. Landlord shall also perform any such work in a manner designed to minimize interference with Tenant's normal business operations.

E. If Landlord shall fail to supply, or be delayed in supplying, any service required to be supplied by Landlord under this Lease for any reason (including mechanical breakdown, maintenance or repair work, or Unavoidable Delays (as defined below)), such failure or delay shall not constitute an actual or constructive eviction, in whole or in part, nor shall the same relieve Tenant from any of its obligations under this Lease, or impose any liability upon Landlord, or entitle Tenant to any abatement or diminution of rent. **"Unavoidable Delays"**

means delays caused by strikes, acts of God, lockouts, labor difficulties, riots, explosions, sabotage, mechanical breakdowns, accidents, inability to obtain labor or materials, governmental restrictions, enemy action, civil commotion, fire, unavoidable casualty or any other cause or reason whatsoever beyond the reasonable control of Landlord.

9. Use of Premises.

A. Tenant shall use and occupy the Premises solely for the conduct of the business specified in Section 1.J. Tenant acknowledges that Landlord reserves the right to grant to anyone the exclusive right to conduct any particular business or undertaking in the Building. Tenant shall comply with all applicable zoning regulations and Legal Requirements pertaining to the use and occupancy of the Premises and the Building, including the Americans with Disabilities Act and other laws relating to the use of the Premises by persons with disabilities.

B. Tenant shall not knowingly permit any act upon the Premises which (1) disturbs tenants of the Building or injures the reputation of the Building; (2) subjects Landlord to liability for injury or damage to persons or property; or (3) invalidates, or increases the cost of, any insurance policy pertaining to the Building. Tenant shall pay to Landlord the amount of any increase in Landlord's insurance costs caused by Tenant's activities. Tenant shall not knowingly permit the Premises to be occupied by anyone other than Tenant except as provided by Section 16.

C. Tenant shall not cause or permit any Hazardous Materials (as defined below) to be generated, used, released, stored, disposed, or abandoned in, on, under or about the Premises, Building, or the Land provided that Tenant may use and store in the Premises such quantities of standard cleaning and office materials as may be reasonably necessary for Tenant to conduct normal general office use operations in the Premises, but only to the extent that such materials are used, stored, and disposed by Tenant in compliance with Environmental Law (as defined below). At the expiration or earlier termination of this Lease, Tenant shall surrender the Premises to Landlord free of Hazardous Materials and in compliance with all Environmental Laws. "**Hazardous Materials**" means any of the following and any substance or material that contains any of the following: (a) asbestos, asbestos containing materials, and presumed asbestos containing materials; (b) oils, petroleum, petroleum products and by-products, drilling fluids, produced waters, and other wastes associated with the exploration, development, or production of crude oil, natural gas, or geothermal resources; (c) polychlorinated biphenyls, urea formaldehyde, radon gas, radioactive materials (including any source, special nuclear, or byproduct material), medical waste, chlorofluorocarbons, lead or lead-based products, and any other substance whose presence could be detrimental to the Premises, Building, or the Land or to health or the environment and (d) any substance that is then defined or listed in, or otherwise classified pursuant to, any Environmental Law or any other applicable Legal Requirements as a "hazardous substance," "hazardous material," "hazardous waste," "infectious waste," "toxic substance," "toxic pollutant," or any other formulation intended to define, list, or classify substances by reason of deleterious properties such as ignitability, corrosivity, reactivity, carcinogenicity, toxicity, and reproductive toxicity. "**Environmental Law**" means any present

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and future law and any amendments thereto (whether common law, statute, rule, order, regulation or otherwise), permits, directives, and other requirements of governmental authorities applicable to the Premises, the Building or the Land and relating to the environment, environmental conditions, health, safety, or to any Hazardous Material, including, without limitation, the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C. § 9601 et seq., the Resource Conservation and Recovery Act of 1976, 42 U.S.C. § 6901 et seq., the Hazardous Materials Transportation Act, 49 U.S.C. § 5101 et seq., the Federal Water Pollution Control Act, 33 U.S.C. § 1251 et seq., the Clean Air Act, 42 U.S.C. § 7401 et seq., the Toxic Substances Control Act, 15 U.S.C. § 2601 et seq., the Safe Drinking Water Act, 42 U.S.C. § 300f et seq., the Emergency Planning and Community Right-To-Know Act, 42 U.S.C. § 1100 et seq., the Occupational Safety and Health Act, 29 U.S.C. § 651 et seq., any so-called "Super Fund" or "Super Lien" law, any Legal Requirements requiring the filing of reports or notices relating to Hazardous Materials, and any similar state and local laws, all amendments thereto, and all regulations, orders, decisions, and decrees now or hereafter promulgated thereunder concerning the environment, industrial hygiene or public health or safety.

D. Notwithstanding the expiration or early termination of this Lease, Tenant shall release, indemnify and hold harmless Landlord, its affiliates, officers, directors, members, partners, stockholders, managers, employees, agents and principals, in accordance with the applicable terms of Section 13.1 below, from and against any damage, injury, loss, liability, violation, charge, demand or claim (including reasonable attorneys' fees, consultants' fees, and any costs of litigation) based on, arising out of, or related to: (a) the actual or alleged release, presence, removal, or failure to remove, of Hazardous Materials generated, used, released, stored, disposed, or abandoned by Tenant or its employees, agents or contractors, in, on, under or about the Premises, the Building, or the Land whether before or after the date of this Lease first written above; (b) any violation of Environmental Law by Tenant or its employees, agents or contractors in, on, under or about the Premises, the Building, or the Land; or (c) any investigation, assessment, removal, cleanup, abatement, or other corrective action taken with respect to the use or occupancy of the Premises by Tenant or its employees, agents or contractors. In addition, Tenant shall give Landlord immediate verbal and follow-up written notice of any actual or threatened Environmental Default (as defined below), which Environmental Default Tenant shall cure in compliance with all Environmental Law and to the satisfaction of Landlord. An "**Environmental Default**" means any of the following by Tenant or its employees, agents or contractors relating to the Premises, the Building or the Land: (x) a violation of Environmental Law; (y) a release, spill or discharge of Hazardous Materials whether or not required to be reported under Environmental Law; or (z) an environmental condition requiring responsive action, whether or not the condition presents an emergency. Upon any Environmental Default, in addition to all other rights available to Landlord under this Lease, at law or in equity, Landlord shall have the right but not the obligation to immediately enter the Premises, to supervise and direct actions taken by Tenant to address the Environmental Default, and, if Tenant fails to promptly address same to Landlord's satisfaction, to perform, at Tenant's sole cost and expense, any action Landlord deems necessary to address same. If any lender or governmental agency shall require an assessment, testing or other action to ascertain whether an Environmental Default is pending or threatened, then Tenant shall pay the reasonable costs

therefor as additional rent. Promptly upon request, Tenant shall execute commercially reasonable forms, affidavits, representations and similar documents concerning Tenant's best knowledge and belief regarding compliance with Environmental Law and the presence, use, storage, and disposal of Hazardous Materials in, on, under or from the Premises, the Building and the Land by Tenant.

10. Care of Premises.

A. Tenant shall pay for and make all repairs and replacements to the Premises which are not Landlord's responsibility under Section 10.B, and will, at Tenant's expense: (1) keep the Premises clean and in good order and condition; (2) pay for and make repairs and replacements to the Premises or Building needed because of Tenant's misuse or negligence; (3) pay for and replace special equipment and items or decorative treatments above Building Standard Specifications installed by or at Tenant's request and that serve only the Premises; and (4) not commit waste. All damage or injury to the Premises or the Building caused by Tenant or its agents shall be repaired or replaced promptly by Tenant, at its sole cost and expense, to the satisfaction of Landlord.

B. Landlord shall pay for and make the following repairs as and when Landlord deems necessary; provided that, Landlord shall complete such repairs within a commercially reasonable period and in a manner designed to minimize interference with Tenant's normal business operations: (1) structural repairs to the Premises and the Building; (2) repairs required in order to provide the elevator, plumbing, electrical, heating and air-conditioning and other services to be furnished by Landlord pursuant to this Lease; and (3) repairs to exterior portions of the Building, including the windows and roof thereof. If a repair which is Landlord's responsibility is necessitated by an act or omission of Tenant or its agents, Landlord shall make the repair, and (subject to Section 13.C) Tenant shall reimburse Landlord promptly for the cost of the repair. Tenant shall notify Landlord of any condition needing repair which is Landlord's responsibility under this Section.

C. Repairs or replacements required under Sections 10.A or 10.B shall be made by Tenant or Landlord, as applicable, within a reasonable time (depending on the nature of the repair or replacement needed) after such party receives notice or has actual knowledge of the need for a repair or replacement.

11. Rules and Regulations. Tenant and its agents, employees and invitees shall comply with all rules and regulations attached as Exhibit D to this Lease, as the same may be amended by Landlord, and with such other reasonable rules and regulations as Landlord may adopt for the Premises and the Building (the "**Rules and Regulations**") and provided in writing to Tenant. Subject to Section 17, any failure of Tenant or such other parties to comply with the Rules and Regulations shall constitute a default under this Lease. If any such rule or regulation conflicts with or is inconsistent with any provision of this Lease, the Lease provision shall govern and control. Landlord shall not be responsible for any violation of the Rules and

Regulations (or the covenants or agreements contained in any other lease for space in the Building) by any other tenant of the Building or its agents, employees or invitees.

12. Tenant's Alterations and Installations.

A. Tenant shall make no alterations, decorations, additions or improvements ("Alterations") in or to the Premises without the prior written consent of Landlord. Landlord's consent shall not be unreasonably withheld for nonstructural interior alterations to the Premises that do not adversely affect the Building's appearance, value and structural strength. Landlord's consent shall not be required for non-structural, interior Alterations to the Premises that do not affect the Building's appearance, value or structural strength and which cost less than \$25,000.00 in the aggregate in any calendar year. All Alterations that Tenant is permitted to make to the Premises shall (1) not harm the structure or the electrical, plumbing, heating or air conditioning facilities of the Premises or the Building; (2) comply with all applicable Legal Requirements, including the Americans with Disabilities Act and other laws relating to the use of the Premises by persons with disabilities; (3) become the property of Landlord, and shall be surrendered with the Premises at the end of the Term, to the extent that such Alterations are of a permanent nature or cannot be removed without structural damage to the Premises or the Building; and (4) be performed, at Tenant's sole cost and expense, in a good and workmanlike manner by contractors approved by Landlord, using materials of first-class quality.

B. Except as otherwise provided in Section 12.A, all furniture, furnishings and trade fixtures, installed by or at the expense of Tenant ("Tenant's Special Installations") shall remain the property of Tenant. If Tenant is not then in default under this Lease, Tenant may, at its expense, remove Tenant's Special Installations at the expiration of the Term, provided that Tenant fully repairs any damage occasioned by such removal. At Landlord's option, exercisable upon thirty (30) days' prior written notice to Tenant, Tenant shall be obligated, at its expense, to remove all of Tenant's Special Installations at the expiration of the Term.

C. Tenant shall not permit any materialmen's or mechanics' liens to be filed against the Premises or the Building in connection with any item of construction or repair performed by or at the request of Tenant. If any such lien is filed, Tenant shall, within thirty (30) days after notice, discharge the lien of record or, if Tenant elects to contest the lien by appropriate proceedings, bond off the lien and prosecute the proceedings. If Tenant fails to discharge or bond off the lien, Landlord may do so, and any monies expended by Landlord in doing so, including reasonable attorneys' fees and legal expenses, shall be reimbursed by Tenant promptly. Notice is hereby given that Landlord shall not be liable for any labor or materials furnished to Tenant upon credit, and that no mechanics or materialmen's lien for any such labor or materials shall attach to or affect the reversion or other estate or interest of Landlord in and to the Premises or the Building.

13. Tenant's Indemnity; Insurance.

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A. Landlord shall not be liable for, and, subject to the waiver of subrogation set forth in Section 13.C of this Lease, Tenant does hereby indemnify and agree to protect, defend and hold Landlord, Landlord's mortgagee(s), and their respective affiliates, officers, directors, members, managers, employees, stockholders, and principals (collectively, the "**Indemnified Parties**") harmless from and against any loss, damage, liability or claim (including reasonable attorneys' fees and legal expenses) in connection with any injury or loss to any person or property (1) arising from or in connection with Tenant's possession, use or occupancy of the Premises, unless caused by the gross negligence or willful misconduct of Landlord; (2) arising out of any act or omission of Tenant or its employees, agents or invitees; or (3) arising from or in connection with any default by Tenant under this Lease.

B.

(1) Throughout the Term, Tenant shall maintain a commercial general liability insurance policy, on an occurrence basis, including coverage for bodily injury and death, property damage and personal injury, and contractual liability coverage (the "**Liability Policy**") with limits of at least One Million Dollars (\$1,000,000) per occurrence and Two Million Dollars (\$2,000,000) aggregate for each location in which Tenant operates its business. The Liability Policy shall be on an ISO form CG 00 01 or a substitute providing equivalent coverage. Such policy shall name Landlord and the Indemnified Parties as additional insureds, on an ISO form CG 20 11 01 96 or equivalent form. The Liability Policy shall be endorsed to include a waiver of subrogation by the insurer as to Landlord and the Indemnified Parties. The personal injury contractual liability exclusion shall be deleted from the contractual liability coverage. The following exclusions/limitations (or their equivalents) are not permitted: (a) Contractual Liability Limitation, ISO CG 21 39; (b) Amendment to Insured Contract Definition, ISO CG 24 26; (c) Limitation of Coverage to Designated Premises or Projects, ISO CF 21 44; (d) any endorsement modifying or deleting the exception to the Employer's Liability exclusion; (e) any "insured vs. Insured" exclusion; and (f) any type of punitive, exemplary or multiplied damage exclusion. In addition, Tenant's Liability Policy shall (i) list as additional insureds Landlord, the Indemnified Parties, and any other parties with an insurable interest in the Premises designated by Landlord, and (ii) be endorsed to require the insurance carrier to notify Landlord in writing of any losses charged against the policy. If any losses are charged against Tenant's Liability Policy, Tenant shall take the necessary steps to restore such insurance so that Tenant's insurance coverage under each such policy at all times equals at least One Million Dollars (\$1,000,000) per occurrence and Two Million Dollars (\$2,000,000) aggregate for each location in which Tenant operates its business. In addition, Tenant shall maintain an Umbrella Policy with limits of at least Two Million Dollars (\$2,000,000) per occurrence/aggregate that supports the underlying commercial general liability policy.

(2) Throughout the Term, Tenant shall maintain a "Causes of Loss – Special Form" policy of insurance ("**Property Policy**") covering any insurable interest that Tenant may have in the Premises or in any equipment serving the Premises, Tenant's leasehold improvements, Tenant's Alterations, trade fixtures, equipment and personal property kept at the Premises or elsewhere in the Building, for 100% Replacement Cost, on an Agreed Value Basis,

and in compliance with all Legal Requirements affecting the Premises at any time during the Term of the Lease. The Property Policy shall be on an ISO form CP 10 30 or a substitute providing equivalent coverage. Tenant and Landlord shall be named as insureds on the Property Policy as their interests may appear.

(3) All such insurance policies required to be carried by Tenant hereunder shall: (a) be maintained with a company licensed to sell insurance in the jurisdiction in which the Building is located and having a Best Rating of at least "A:VIII; (b) endorsed to provide primary coverage and not require contribution by any insurance maintained by the Landlord or the Indemnified Parties, it being the specific intent of the parties to this Lease that all insurance held by Landlord (or the Indemnified Parties) shall be excess above the insurance required to be maintained by Tenant by this Lease; (c) contain an express waiver of any right of subrogation by the insurer against Landlord and the Indemnified Parties; and (d) include an endorsement providing that the insurance policy may not be cancelled or materially changed unless Landlord has been given thirty (30) days' prior written notice thereof. Before the Term commences, and at least sixty (60) days before any such insurance policy expires, Tenant shall deliver to Landlord an ACORD certificate of insurance for each policy or renewal thereof that Tenant is required to maintain under this Section 13.B, accompanied by certified copies of all required endorsements, the policy declaration page reflecting issuance of the endorsements, and the Schedule of Forms and Endorsement page. If Tenant fails to maintain any insurance required by this Section 13.B, Landlord may obtain such insurance, and any premium paid by Landlord shall be immediately payable by Tenant to Landlord as additional rent. Tenant shall require any permitted sublessee or assignee of the Premises pursuant to Section 16 to comply with the requirements of this Section 13.B.

(4) Landlord shall carry such insurance policy or policies in such coverage amounts as would be carried by a reasonably prudent owner of real estate of this type, quality and location.

C. Neither party shall be liable to the other or to any insurer (by way of subrogation or otherwise) for any loss or damage, even though such loss or damage may have been occasioned by the negligence of such party, if such loss was covered or is required by this Lease to be covered by an insurance policy containing an endorsement or provision to the effect that any such release by the insured shall not adversely affect the insured's right to recover for such loss or that the insurer waives its right of subrogation. This waiver also applies to each party's affiliates, officers, directors, members, partners, stockholders, managers, employees, agents and principals.

14. Casualty Loss. If fifty percent (50%) or more of the Building (excluding the Land) suffers casualty damage, Landlord may terminate this Lease upon written notice to Tenant given within ninety (90) days after such casualty damage occurs. If Landlord does not (or may not) terminate this Lease, Landlord shall repair the Premises (excluding Tenant's fixtures and leasehold improvements and Special Installations) as soon as practicable after Landlord receives a settlement under its insurance policy, but Landlord shall not be required to expend for the

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repair more than the available insurance proceeds after applying the proceeds to repay any loan that becomes payable due to the casualty damage. If the Premises are not damaged, or the damage does not interfere with Tenant's business, there shall be no abatement of rent. If the damage interferes with Tenant's business, but Tenant is able to use the Premises, Basic Rent and additional rent under Sections 4 and 5 shall be abated by the percentage that the unusable Rentable Area of the Premises bears to the total Rentable Area thereof, starting on the date of the casualty and ending on the date that Landlord's repairs to the Premises have been substantially completed. If the damage makes it impracticable for Tenant to carry on its business in the Premises, all rent shall be abated, starting on the date of the casualty and ending on the date that Landlord's repairs to the Premises have been substantially completed. No damages, compensation or claim shall be payable by Landlord to Tenant for inconvenience, loss of business or annoyance arising from any repair or restoration of any portion of the Premises or of the Building. Notwithstanding the foregoing, Landlord shall have no obligation whatsoever to repair, reconstruct or restore the Premises and/or the Building if any of the following occurs: (a) the holder of the first deed of trust, security agreement or mortgage encumbering the Building elects not to permit the insurance proceeds payable upon damage or destruction of the Building or Premises to be used for such repair, reconstruction or restoration; (b) the damage or destruction is not fully covered by insurance maintained by Landlord or for Landlord's benefit; (c) the damage or destruction occurs during the last six (6) months of the Term of this Lease or any renewal or extension thereof; (d) a default, or an event that, with the giving of notice or passage of time, would become a default, by Tenant has occurred under this Lease; or (e) Tenant has vacated or abandoned the Premises. In any such event, Landlord may terminate this Lease by written notice to Tenant given within thirty (30) days after the damage or destruction.

15. Condemnation. If, under eminent domain, all of the Premises is taken, this Lease shall terminate as of the date of such taking. If the Premises are partially taken, and such partial taking materially and adversely affects Tenant's business on the Premises, either party may terminate this Lease upon notice to the other within sixty (60) days after title vests in the condemning authority. If neither party elects to terminate this Lease, Basic Rent and additional rent under Sections 4 and 5 shall be reduced by the percentage that the part taken bears to the entire Premises. If any portion of the Building (excluding the Land) is taken, Landlord may terminate this Lease by giving notice to Tenant within sixty (60) days after title vests in the condemning authority. Landlord shall be entitled to all damages and compensation awarded for any taking. Tenant, however, may claim any award made specifically for Tenant's Special Installations, but only if such award shall be made by the condemnation court in addition to and stated separately from the award made by it for the Building or part thereof so taken. In no event shall Tenant claim any award for its leasehold. A taking under this Section 15 shall include a temporary taking of more than ninety (90) days.

16. Assignment and Subletting.

A. Tenant shall not assign, transfer or mortgage or otherwise encumber this Lease, whether voluntarily, by operation of law or otherwise (collectively, an "**Assignment**"), without the prior written consent of Landlord, which consent shall not be unreasonably withheld,

conditioned or delayed provided that the proposed assignee, transferee or mortgagee (collectively, an "Assignee") in connection with such Assignment: (1) is compatible with the class, quality and stature of the Building and its tenants; (2) will use the Premises only for the purposes and manner permitted under this Lease; and (3) has the financial capability to undertake and perform its obligations under this Lease, all to the reasonable satisfaction of Landlord. Any attempted Assignment without Landlord's prior written consent shall be void and confer no rights upon any third party. Regardless of whether an Assignment is effected in violation of or in compliance with the terms of this Lease, Landlord may collect rent from the Assignee and apply the net amount collected to the rent herein reserved, but no such Assignment or collection shall be deemed a waiver of this covenant, acceptance of the Assignee as tenant, or release of Tenant under this Lease. If Landlord consents to an Assignment, Tenant shall nevertheless remain liable for the payment and performance of all covenants and obligations of the tenant under this Lease, and Landlord's prior written consent to any further Assignment shall be required. In addition, if Tenant requests Landlord's consent to an Assignment, Tenant shall reimburse Landlord for reasonable legal fees and expenses, and costs incurred in connection with the preparation and review of the documents to effectuate the Assignment.

B. The following events shall also constitute an Assignment under this Section 16: (1) if Tenant is a corporation, the transfer of more than fifty percent (50%) of the voting stock of Tenant; (2) if Tenant is a partnership, the transfer of more than fifty percent (50%) of the partnership interests of Tenant or the transfer of any general partnership interest of Tenant; (3) any disposition or transfer by Tenant (other than an approved Subletting) of its rights or obligations under this Lease; or (4) any arrangement (other than an approved Subletting) that allows the use and occupancy of the Premises by any person or entity other than Tenant.

C. Tenant shall not sublet or otherwise permit others to use all or any part of the Premises, whether voluntarily, by operation of law or otherwise (collectively, a "Subletting"), without the prior written consent of Landlord, which consent shall not be unreasonably withheld, conditioned or delayed provided that the proposed sublessee or occupant (collectively, a "Sublessee") in connection with such Subletting: (1) is compatible with the class, quality and stature of the Building and its tenants; (2) will use the Premises only for the purposes and manner permitted under this Lease; and (3) has the financial capability to undertake and perform its obligations under the applicable sublease agreement and this Lease (as applicable), all to the reasonable satisfaction of Landlord. Landlord shall consent to or reject any proposed Subletting by Tenant within ten (10) Business Days after the date on which Tenant provides Landlord with all information reasonably required by Landlord to make an underwriting decision about the Sublessee proposed by Tenant. Prior to the date on which the Building is one hundred percent (100%) leased to third party tenants, Tenant shall not propose or enter into a Subletting for a basic rent that is less than the Basic Rent that is then payable by Tenant to Landlord pursuant to the terms of this Lease.

D. If the rent agreed upon between Tenant and its proposed subtenant under any permitted Subletting is greater than the Basic Rent then payable by Tenant under this Lease for the portion of the Premises that is subject to such permitted Subletting, then one half (1/2) of

such excess rent shall be considered additional rent owned by Tenant to Landlord, and shall be paid by Tenant to Landlord in the same manner that Tenant pays Basic Rent under this Lease. In addition, any lump sum payment to Tenant in connection with any permitted Assignment or Subletting shall be paid by Tenant to Landlord as additional rent.

E. If Tenant requests Landlord's consent to a proposed Assignment, Landlord shall have the right to elect to terminate the Lease with respect to the portion of the Premises affected by such Assignment. Landlord shall exercise such option by written notice to Tenant within fifteen (15) Business Days after Landlord's receipt of notice from Tenant requesting Landlord's consent to the proposed Assignment.

F. Nothing set forth in this Section 16 shall be construed to create any privity of contract between Landlord and any sublessee, assignee or transferee of the Premises pursuant to any Assignment or Subletting entered into by Tenant, whether or not Landlord has consented thereto.

17. Default Provisions. Tenant shall be in default under this Lease if Tenant (A) fails to pay any Basic Rent, Additional Charges or other sum required under this Lease within five (5) days after its due date; (B) fails to furnish any financial statement or other documents to be delivered by Tenant to Landlord or any third party as required under this Lease within five (5) days following any written request from Landlord to Tenant; (C) fails to maintain any insurance required under this Lease; (D) abandons the Premises and fails to pay any rent due hereunder; (E) assigns, mortgages or encumbers this Lease or sublets all or any portion of the Premises in violation of Section 16; (F) files for relief under the United States Bankruptcy Code (the "**Bankruptcy Code**") or under any other state or federal bankruptcy or insolvency law, or files an assignment for the benefit of creditors, or if an involuntary proceeding under the Bankruptcy Code or under any other federal or state bankruptcy or insolvency law is commenced against Tenant, or a receiver, trustee, custodian or any similar responsible party, or a representative is appointed for any or all of Tenant's property or assets, or a foreclosure, replevin, forfeiture, seizure, attachment, garnishment, or any similar action, proceeding or process is instituted upon or against any of Tenant's real, personal or other property; (G) if an Environmental Default, as defined in Section 9.D of this Lease, shall occur, or (F) defaults in any other obligation under this Lease and such default is not remedied within fifteen (15) days after written notice of the default by Landlord or its agent; provided that, if any non-monetary default shall reasonably require more than fifteen (15) days to cure, Tenant shall be allowed such longer period, not to exceed forty-five (45) days from the date of Landlord's default notice to Tenant, as is necessary to effect such cure, so long as Tenant's efforts to cure are commenced within the aforesaid 15-day period and are diligently pursued to completion; and provided, further, that Tenant's failure to comply with the provisions of this Lease two (2) times in any twelve (12) month period shall effect an immediate default (without the expiration of any applicable cure period) with respect to all subsequent failures by Tenant to comply with the provisions of this Lease, and Landlord thereupon may exercise any remedy set forth in Section 18 without affording Tenant any opportunity to cure such default.

18. Landlord's Remedies in Case of Tenant's Default.

A. At any time after Tenant's default under this Lease (beyond the expiration of any applicable notice and cure period), Landlord may (1) terminate this Lease upon notice to Tenant or by any available judicial process; and/or (2) re-enter the Premises (with or without terminating the Lease), remove all property and store it at Tenant's expense without being deemed guilty of trespass and without liability for any loss or damage, and/or relet or otherwise deal with the Premises in any manner which Landlord determines in its sole discretion.

B. Should Landlord terminate this Lease after Tenant's default (beyond the expiration of any applicable notice and cure period), Landlord may recover from Tenant all costs (including reasonable attorneys' fees and legal expenses) and other damages incurred by Landlord as a result of such default, and, without limiting the generality of the foregoing, (1) all rent to the time of such termination and the unamortized portion of the costs incurred by Landlord to complete the Tenant's Work shall be paid by Tenant immediately, together with all expenses (including reasonable attorneys' fees and legal expenses) of retaking possession of the Premises; (2) Landlord may take all steps, including repair or alteration of the Premises, to prepare the Premises for reletting, and Tenant shall pay to Landlord, immediately upon demand by Landlord, all costs incurred by Landlord in preparing the Premises for reletting and all costs of actually reletting the Premises; (3) Landlord may relet all or any part of the Premises for such term, at such rental, and upon such conditions as Landlord, in its sole discretion, deems advisable; and (4) Tenant shall pay to Landlord, as liquidated damages, for each month during the balance of the Term (but for termination of the Lease by Landlord), on the first day of each such month any deficiency between (a) all rent and additional rent herein reserved for each such month, and (b) the net rent for each such month collected upon any reletting (which reasonable rental value shall exclude the value, if any, added to the Premises by reason of any additional improvements or alterations installed in the Premises by Landlord or at Landlord's expense in connection with reletting or attempting to relet the Premises). Alternatively, if Landlord terminates this Lease at any time after Tenant's default (beyond the expiration of any applicable notice and cure period), Landlord may elect, in addition to the damages described in clauses (1) through (3), inclusive, of the preceding sentence, and the damages due under clause (4) up to the time of said election, to recover from Tenant an amount equal to the difference, discounted to present value based upon an annual rate of interest equal to the then-current yield on actively traded U.S. Treasury obligations maturing on or about that date which is approximately midway between the date of demand and the date this Lease would have terminated (but for Tenant's default), as published in The Wall Street Journal or such other publication as Landlord may designate in its demand, between (i) the Basic Rent and Additional Charges, computed on the basis of the then-current annual rate of Basic Rent and Additional Charges, which would have been payable from the date of such demand to the date when this Lease would have expired (but for termination of the Lease by Landlord), and (ii) the then fair rental value of the Premises for the same period.

C. If Landlord elects not to terminate this Lease after Tenant's default (and the expiration of any applicable notice and cure period), Tenant shall continue to be liable for all

rent and additional rent due under this Lease, in addition to all costs (including reasonable attorneys' fees and legal expenses) and other damages arising from Tenant's default, and Tenant shall remain obligated to perform all other obligations imposed by this Lease. Landlord's election not to terminate this Lease upon any default by Tenant (and after the expiration of any applicable notice and cure period) shall not impair Landlord's right to terminate this Lease later for that default, or upon any other default by Tenant.

D. If Tenant abandons the Premises and fails to pay any rent due hereunder, Landlord may re-enter the Premises without judicial process and relet them, and such re-entry or reletting shall not terminate this Lease, and Tenant shall continue to be liable for all rent and additional rent due under the Lease, in addition to all costs (including reasonable attorneys' fees and legal expenses) and other damages arising from Tenant's default.

E. Tenant waives all rights of redemption granted by law. This means that, once Tenant has committed a default and failed to cure that default within any notice and cure period provided by this Lease, Tenant waives all rights under law to later cure the default and reclaim its interest in this Lease or the Premises.

F. Landlord's rights and remedies set forth in this Lease are cumulative and in addition to Landlord's other rights and remedies at law or in equity. Landlord's exercise of any right or remedy under this Lease or at law or in equity shall not prevent the concurrent or subsequent exercise of any other right or remedy by Landlord. Landlord's delay or failure to exercise or enforce any of Landlord's rights or remedies or Landlord's obligations shall not constitute a waiver of any such rights, remedies or obligations.

19. Landlord May Perform Tenant's Obligations. If Tenant shall fail to pay or perform any of its obligations under this Lease, Landlord may (but shall not be obligated to) upon the continuance of such default for ten (10) days after written notice to Tenant (or without notice in the case of an emergency), and without waiving or releasing Tenant from any obligation under this Lease, make any such payment or perform any such obligation. All sums so paid by Landlord and all incidental costs and expenses, including reasonable attorney's fees and legal expenses, incurred by Landlord in making such payment or performing such obligation shall be deemed additional rent and shall be paid to Landlord on demand together with interest thereon at the rate specified in Section 6 from the date Landlord makes such payment or performs such obligation until the date Tenant pays the same to Landlord.

20. Security Deposit.

A. Simultaneously with execution of this Lease, Tenant has deposited with Landlord the sum set forth in Section 1.M (the "**Security Deposit**") in the form of cash or other current funds as security for performance of Tenant's obligations under this Lease. The Security Deposit shall be returned to Tenant, without interest and less such portion thereof as Landlord shall have appropriated to satisfy any default under this Lease and such portion as Landlord reasonably believes will be payable by Tenant in connection with the reconciliation of Operating

Expenses for the calendar year in which the Term expires, within forty-five (45) days after the later of: (i) the expiration of the Term; or (ii) the date on which Tenant vacates the Premises and tenders possession of the same to Landlord, provided that Tenant has discharged all such obligations. Landlord may apply the Security Deposit to cure any default of Tenant, and Tenant shall deposit with Landlord the amount applied (in the form of cash or other current funds) within ten (10) days after written demand. Landlord's application of the Security Deposit shall not prevent Landlord from exercising any other right or remedy under this Lease or at law, and shall not operate as a limitation on any recovery to which Landlord may otherwise be entitled. Tenant hereby authorizes Landlord to deposit the Security Deposit with the holder of any mortgage now or hereafter encumbering the Building if and to the extent required by said holder; provided, however, that such holder shall hold the Security Deposit subject to Tenant's rights with respect to the Security Deposit set forth herein.

B. If Landlord's interest in the Premises is transferred, Landlord shall transfer the unapplied portion of the Security Deposit to the transferee thereof. In such event, Landlord shall be deemed to have been released by Tenant from all liability or obligation for the return of the Security Deposit, Tenant agrees to look solely to such transferee for the return of the Security Deposit, and the transferee shall be bound by all provisions of this Lease relating to the return of the Security Deposit.

21. Subordination.

A. This Lease shall be subject and subordinate at all times to (1) every ground or underlying lease hereafter made of the Building or the Land, and (2) any and all Mortgages now or hereafter placed upon or affecting the fee of, or any leasehold, beneficial or land trust interest in, the Building or the Land, all without Tenant executing any further instruments to effectuate such subordination. Tenant shall execute and deliver, within ten (10) Business Days after request, any further instruments evidencing such subordination of this Lease as Landlord may reasonably request. Upon advance written request, Tenant will also promptly submit to Landlord or the Mortgagee current financial statements and financial statements covering the two (2) immediately preceding years, but, except with regard to requests arising from or related to the sale or financing of the Building and/or Land, Landlord shall not make this request more than once a year. Landlord shall use commercially reasonable efforts to treat any of Tenant's financial statements so delivered to Landlord as confidential, except that Landlord may disclose the same to its third party consultants in connection with this Lease (including, without limitation, its legal counsel and accountants), to comply with applicable law and to enforce its rights and remedies under this Lease. Landlord shall use commercially reasonable efforts to cause any lender for the Building or the Land to issue a nondisturbance and recognition agreement in favor of Tenant on such lender's standard form therefor at no cost therefor to Tenant.

B. In the event of (1) a transfer of Landlord's interest in the Premises; (2) the termination of any ground or underlying lease of the Building or the Land; or (3) the purchase of

the Building or the Land in a foreclosure sale under any Mortgage (or by deed in lieu thereof), Tenant hereby attorns to and recognizes, in accordance with the terms of this Lease, the transferee or purchaser of Landlord's interest or the lessor under the terminated ground or underlying lease (collectively, "**Landlord's Transferee**") as Landlord under this Lease for the balance then remaining of the Term. Landlord's Transferee shall not be (a) liable for any act or omission of Landlord; (b) liable for any deposits made by Tenant to Landlord unless such deposits are specifically assigned to and received by Landlord's Transferee; (c) subject to any offset, defense, recoupment or counterclaim accruing in favor of Tenant; (d) bound by any payment of Basic Rent under Section 4, additional rent under Section 5 or Additional Charges for more than one month in advance of its due date, (e) bound by any modifications, cancellations, terminations or surrender of this Lease made without the prior approval of the then present holder of any Mortgage on the Building or the Land, unless consented to by such then present holder of such Mortgage; nor (f) bound by any assignment, transfer or mortgage of this Lease or subletting of the Premises made in violation of this Lease. Tenant's attornment shall not be terminated by foreclosure of any Mortgage or deed in lieu thereof. At the request of Landlord or Landlord's Transferee, Tenant shall promptly execute any certificate or agreement in confirmation of this attornment on the standard form prepared for such purpose by Landlord's Transferee.

C. If (1) the Building or the Land is at any time subject to a Mortgage; (2) this Lease, or the Basic Rent payable under this Lease, is assigned to a Mortgagee; and (3) Tenant is given written notice of such assignment (including the name and address of the assignee), Tenant shall not exercise any remedy available to Tenant under this Lease for any default by Landlord until (a) the expiration of any applicable notice and cure period in respect of such default specified herein, and (b) Tenant has thereafter given written notice, in conformity with Section 32, to such assignee, specifying the nature of Landlord's default in reasonable detail, and affording such assignee a reasonable opportunity to cure such default for and on behalf of Landlord.

22. Landlord's Lien.

D. To secure the payment of all rent and other charges that may become due to Landlord under this Lease, Tenant hereby grants to Landlord, effective as of the date of this Lease, a right of distress for rent and a contractual first lien and security interest upon all the goods, wares, merchandise, inventory, furniture, fixtures, machinery, equipment and other personal property of Tenant ("**Tenant's Personalty**") located in the Premises at any time during the Term and upon all proceeds of any insurance which may accrue to Tenant by reason of damage to or destruction of any of Tenant's Personalty. All exemption laws are hereby waived by Tenant. This lien is given in addition to Landlord's statutory liens and shall be cumulative thereto.

E. This Lease shall also constitute a security agreement under the Uniform Commercial Code of the Commonwealth of Virginia. None of Tenant's Personalty situated on the Premises shall be removed from the Premises without the prior written consent of Landlord

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unless all rent and other charges due to Landlord shall have been paid in full, Tenant is not in default of any of its obligations under this Lease, and Tenant is otherwise permitted to remove Tenant's Personalty pursuant to this Lease. Upon Tenant's default under this Lease, Landlord shall have the option, in addition to any other remedies provided herein or by law, to enter into the Premises with or without the permission of Tenant and take possession of any and all of Tenant's Personalty situated on the Premises without liability for trespass or conversion and to enforce the first lien and security interest hereby granted in any manner provided by law. Upon Landlord's request, Tenant will execute and deliver to Landlord one or more UCC Financing Statements to evidence the lien and security interest in favor of Landlord established pursuant to Section 22.A, and Tenant will deliver to Landlord an itemized list of Tenant's Personalty situated on the Premises.

F. Tenant shall be solely liable for payment of, and shall timely pay, all personal property taxes and assessments on Tenant's Personalty.

23. Quiet Enjoyment. As long as Tenant is not in default under this Lease, Tenant may peaceably and quietly enjoy the Premises for the Term without hindrance, ejection or molestation by Landlord.

24. Landlord's Right of Access to Premises. Landlord and its agents may enter the Premises at reasonable hours to inspect or exhibit them; to make a repair or alteration to the Premises; to perform any obligation, or to exercise any right, of Landlord under this Lease; or to alter, repair or otherwise prepare the Premises for reoccupancy after Tenant defaults under this Lease. Landlord agrees to give reasonable prior written notice before it exercises its rights under this Section 24, except that Landlord may enter the Premises without notice in the case of an emergency. In making such an entry, Landlord agrees to use reasonable efforts to minimize interference with Tenant's normal business operations. Landlord may erect, use and maintain pipes, conduits, ducts and wiring in and through the Premises provided that such pipes, conduits, ducts and wiring do not detract from the appearance of the Premises or materially interfere with Tenant's use thereof.

25. Limitation on Landlord's Liability.

A. Notwithstanding anything to the contrary in this Lease, (1) Landlord shall not be liable to Tenant for any loss or damage to property which is either covered by insurance or which Tenant is required to insure under this Lease; and (2) any liability of Landlord to Tenant under this Lease shall be limited to direct damages and shall expressly exclude indirect, consequential, incidental or punitive damages, including any liability to Tenant for lost profits or interruption of business. Tenant shall look to its property damage or business interruption insurance policies, and not to Landlord, any party holding an interest in or otherwise affiliated with Landlord, or any agent or employee of Landlord, for any loss incurred as a result of damage to Tenant's property or interruption of Tenant's business, except as provided in section 25(B).

B. Except for damages resulting from the gross negligence or willful

misconduct of Landlord or Landlord's agents, Landlord shall not be liable to Tenant, its employees, agents or invitees for any damage, compensation, claim or expense arising from or in connection with (1) damage or loss to the property of parties other than Tenant located anywhere in the Building; (2) death, accident or injury to persons occurring anywhere in the Building (including the Premises); (3) any delay in completing Tenant's Work; or (4) any discontinuance of heat, air-conditioning, elevator service, or of any other service to be provided by Landlord under this Lease resulting from any cause whatsoever.

C. Notwithstanding anything to the contrary in this Lease, there shall be no liability on the part of Landlord, any party holding an interest in or otherwise affiliated with Landlord (including any partners, stockholders, members, managers, officers, directors, employees or principals of Landlord, as applicable), any agent or employee of Landlord, or any Mortgagee in possession of the Building, with respect to any terms of this Lease. Tenant shall look solely to the estate and interest of Landlord in the land and building for the satisfaction of every remedy of Tenant for any breach by Landlord under this Lease. Upon the transfer of Landlord's interest in the Building, Landlord shall be released from all covenants and obligations of Landlord under this Lease.

26. Estoppel Certificate. Within fifteen (15) days after a request by Landlord, Tenant shall execute and deliver to Landlord, or to such person(s) as Landlord designates, an estoppel certificate in the form attached to this Lease as Exhibit E, or in such other form as is requested by Landlord's lender or by a prospective lender to Landlord or by a prospective purchaser of the Building.

27. Surrender of Premises. Upon the termination of the Term for any reason, Tenant shall remove its property and all items installed in the Premises by Tenant or its agents prior to the Date of Tender, and surrender the Premises to Landlord in the same condition as they were in on the Date of Tender, except for ordinary wear and tear and damage due to casualty loss or condemnation. If Tenant fails to remove its property, it shall become Landlord's property or, at Landlord's option, shall be removed and stored at Tenant's expense, without Landlord being liable for trespass, conversion or negligence in respect of such property. If Tenant fails to surrender the Premises in the condition required by this Section 27, Landlord may restore the Premises to their condition as of the Date of Tender and Tenant shall reimburse Landlord for the cost of the restoration.

28. Holding Over. If Tenant remains in possession of the Premises after the expiration of the Term, Tenant shall be a tenant from month to month, upon all the terms hereof which are not inconsistent with such tenancy; provided, however, that Tenant covenants to pay to Landlord as Basic Rent during such tenancy two times the Basic Rent in effect immediately before expiration of the Term (adjusted to a monthly basis), in addition to all other rent and other charges due under this Lease; and provided, further, that this Section 28 shall not impair Landlord's rights to pursue any and all other remedies that may be available to Landlord under this Lease, at law or in equity in connection with Tenant's failure to vacate the Premises upon the

expiration of the Term. Such tenancy may be terminated by Landlord or Tenant upon thirty (30) days' notice.

29. Parking. Subject to Tenant's compliance with the Rules and Regulations applicable to parking, throughout the Term, at no charge to Tenant, Landlord agrees that for each One Thousand (1,000) square feet of Rentable Area in the Premises, Tenant, its employees and invitees shall have the nonexclusive right to use 3.8 unreserved, uncovered surface parking spaces in the parking area adjacent to the Building in common with other tenants of the Building and in conformity with applicable law. Tenant agrees that it and its employees shall observe reasonable safety precautions in the use of the parking area and shall at all times abide by all rules and regulations promulgated by Landlord governing its use. Landlord reserves the right to close the parking area during periods of unusually inclement weather and portions of the parking area during periods of repair, cleaning and/or maintenance. It is understood and agreed that Landlord does not assume any responsibility for, and shall not be held liable for, any damage or loss to any vehicles parked in the parking area or to any personal property located therein, or for any injury sustained by any person in or about the parking area.

30. Leasing Commission. Landlord recognizes the Leasing Broker named in Section 1.I as Landlord's exclusive broker for this transaction. Landlord agrees to pay the Leasing Broker a leasing commission pursuant to the terms and conditions of a separate agreement. Landlord and Tenant each represents and warrants to the other that, except for the Leasing Broker named in Section 1.J, neither of them has employed any broker in carrying on the negotiations relative to this Lease or otherwise in connection with this Lease. Landlord and Tenant shall each indemnify and hold the other harmless from and against any claims for brokerage or other commission arising from such party having employed a broker (other than the Leasing Broker) contrary to its representation in this Section 31.

31. Notices. All notices and other communications under this Lease shall be in writing, delivered (i) in person, (ii) by nationally recognized overnight delivery service such as FedEx, or (iii) by certified or registered U.S. mail, postage prepaid, to Landlord or Tenant, as the case may be, at Landlord's Notice Address or Tenant's Notice Address, respectively, set forth in Section 1 of this Lease. Either party may designate in writing a change in its notice address, but Landlord may always give notice to Tenant by posting it at the Premises. Notices which are delivered in person shall be deemed given when received. Notices which are mailed shall be deemed given five (5) Business Days after the date they are mailed.

32. Waiver of Jury Trial. Landlord and Tenant, freely, knowingly, voluntarily and with advice of counsel, hereby waive all right to trial by jury in any claim, action, proceeding or counterclaim by either Landlord or Tenant against the other pertaining to any matters arising out of or in any way connected with this Lease, the relationship of Landlord and Tenant, or Tenant's use of the Premises.

33. General Provisions.

A. Tenant's Representative. Tenant represents that it has appointed Ernest

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C. Benner as Tenant's authorized representative ("**Tenant's Representative**") with full power and authority to bind Tenant for all actions to be taken by Tenant under or pursuant to this Lease. Tenant may change the Tenant Representative under this Lease by written notice to Landlord given in conformity with Section 32. Tenant expressly acknowledges and agrees that Landlord shall not be obligated to respond to or act upon any communication given by Tenant under or pursuant to this Lease unless such communication is provided to Landlord by Tenant's Representative. The requirements of this Section 34 shall remain in full force and effect, notwithstanding any Assignment of this Lease or the Premises.

B. Entire Agreement; Amendments; No Representations by Landlord.

This Lease constitutes the entire agreement between the parties concerning the matters set forth herein. Neither Tenant nor Landlord shall be bound by any terms, statements, conditions or representations, oral or written, express or implied, not contained in this Lease. No modification of this Lease shall be binding or valid unless expressed in a writing executed by Landlord and Tenant. Neither Landlord nor Landlord's agents have made any representations or promises with respect to the Premises or the Building except as expressly set forth in this Lease, and all reliance by Tenant with respect to any representations or promises is based solely on those contained in this Lease.

C. Joint and Several Liability; Successors and Assigns. If Tenant shall include more than one person, the obligations of all such persons under this Lease shall be joint and several, and the provisions of this Lease shall individually apply to each person comprising Tenant. This Lease shall be binding upon and inure to the benefit of the parties hereto and their respective successors, permitted assigns, heirs and legal representatives.

D. Interpretation. The Exhibits and Lease Addendum, if any, attached to this Lease are part of this Lease. Section and subsection headings are for convenience only, and not for use in interpreting this Lease. If a court finds any provision of this Lease unenforceable, all other provisions shall remain enforceable, and such unenforceable provision shall be deemed severed from this Lease.

E. Costs; Include; Shall; May. Except as expressly provided otherwise in this Lease, the party obligated to perform an obligation is also obligated, as between Landlord and Tenant, to pay the cost of performance. "Include," "includes," and "including" mean considered as part of a larger group, and not limited to the items recited. "Shall" means is obligated to. "May" means "is permitted to."

F. Waiver. No provision of this Lease is waived by Landlord or Tenant unless waived by them in writing. Landlord's acceptance of rent is not a waiver of any default of Tenant, regardless of Landlord's knowledge of a default when it accepts the rent. No waiver by Landlord of any default is a waiver of any other default of the same or any other provision of this Lease.

G. Rule Against Perpetuities. Notwithstanding any provision in this Lease

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to the contrary, if the Lease Term has not commenced within three (3) years after the date of this Lease, this Lease shall automatically terminate on the third (3rd) anniversary of the date hereof. The sole purpose of this provision is to avoid any possible interpretation that this Lease violates the Rule Against Perpetuities or other rule of law against restraints on alienation.

H. Remedies. The rights and remedies mentioned in this Lease are in addition to, and do not deprive a party of, any other rights at law or in equity.

I. No Option; No Partnership. The submission of this Lease by Tenant for examination does not constitute a reservation of or option for the Premises, and this Lease shall become effective only when it is executed and delivered by Landlord and Tenant. Nothing contained in this Lease shall be construed as creating a partnership or joint venture between Landlord and Tenant, or to create any other relationship between the parties other than that of Landlord and Tenant.

J. Additional Rent. All Additional Charges and other sums owed by Tenant to Landlord in connection with this Lease which are not otherwise designated as rent shall be deemed to be additional rent.

K. Governing Law; Venue. This Lease shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia. Tenant hereby waives any objection to the venue of any action filed by Landlord against Tenant in any state or federal court in the jurisdiction in which the Building is located, and Tenant further waives any right, claim or power, under the doctrine of forum non conveniens or otherwise, to transfer any such action filed by Landlord to any other court.

L. Tenant's Representations. Tenant by its execution hereof, represents and warrants to Landlord and its successors and assigns that Tenant: (i) has the power and authority to enter into this Lease; (ii) is duly organized corporation in good standing under the laws of the jurisdiction of its formation; is qualified to do business and is in good standing in the jurisdiction in which the Building is located; (ii) has taken all corporate action, requisite to authorize Tenant to enter into this Lease; and (iv) has duly authorized the individual(s) signing this lease on behalf of Tenant to do so and thereby bind Tenant.

M. OFAC; Financial Control Laws. As of the effective date of this Lease and at all times throughout the Term of this Lease, including after giving effect to any transfers of interests permitted pursuant to this Lease or done in violation of this Lease, (i) Tenant and every member, partner, manager, person and entity holding, directly or indirectly, an ownership interest in Tenant are in full compliance with all applicable laws and regulations of the United States of America that prohibit, regulate or restrict financial transactions, and any amendments or successors thereto and any applicable regulations promulgated thereunder (collectively, the "**Financial Control Laws**"), including but not limited to those related to money laundering offenses and related compliance and reporting requirements including any money laundering offenses prohibited under the Money Laundering Control Act, 18 U.S.C. Sections 1956, 1957

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Tenant's Initials: ____

and the Bank Secrecy Act, 31 U.S.C. Sections 5311 *et seq.*), the Foreign Assets Control Regulations, 31 C.F.R. Section 500 *et seq.*, Executive Order 13224, 66 Fed. Reg. 49079 (September 25, 2001) (the "**Executive Order**"), and the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act and related regulations, as may be amended or supplemented from time to time (the "**Patriot Act**"); (ii) Tenant and every member, partner, manager, person and entity holding, directly or indirectly, an ownership interest in Tenant are not a Barred Person (as defined below) nor is Tenant owned or controlled, directly or indirectly, by any Barred Person; and neither the Tenant nor any of its members, partners, managers, persons or entities holding, directly or indirectly, an ownership interest in Tenant is acting, directly or indirectly, for or on behalf of any Barred Person. The term "**Barred Person**" means: (i) any person, group or entity named as a "Specially Designated National and Blocked Person" or as a person who commits, threatens to commit, supports, or is associated with terrorism as designated by the United States Department of the Treasury's Office of Foreign Assets Control ("**OFAC**"); (ii) any person, group or entity named in the lists maintained by the United States Department of Commerce (Denied Persons and Entities); (iii) any government or citizen of any country that is subject to a United States Embargo identified in regulations promulgated by OFAC; and (iv) any person, group or entity named as a denied or blocked person or terrorist in any other list maintained by any agency of the United States government, including the not limited to the Executive Order and the Patriot Act. Tenant understands and has been advised by legal counsel on the requirements of the Financial Control Laws. It shall be an immediate default under Section 17 if (x) Tenant and every member, partner, manager, person and entity holding, directly or indirectly, an ownership interest in Tenant are not in full compliance with the Financial Control Laws, or if (y) Tenant or any member, partner, manager, person or entity holding, directly or indirectly, an ownership interest in Tenant is designated as a Barred Person.

N. **Time is of the Essence.** Time is of the essence in the performance of all of Tenant's obligations under this Lease.

O. **Landlord's Notice and Cure Period.** Tenant shall not be entitled to pursue any remedies available to Tenant under this Lease, at law or in equity with respect to any default by Landlord under this Lease unless and until Tenant has provided Landlord with written notice of such default (specifying the nature of the default in reasonable detail) and a reasonable opportunity to cure the default, which period shall in no event be less than sixty (60) days.

P. **Survival.** The obligations of Tenant to (1) pay Basic Rent, Additional Charges (including Operating Expense Increases) and all other sums payable by Tenant under this Lease; and (2) to perform all obligations of Tenant under this Lease, shall survive the expiration of the Term or earlier termination of this Lease.

Q. **Counterparts.** To facilitate execution, this Lease may be executed in as many counterparts as may be required; and it shall not be necessary that the signature of each party, or that the signatures of all persons required to bind any party, appear on each counterpart; but it shall be sufficient that the signature of each party, or that the signatures of the persons

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required to bind any party, appear on one or more of such counterparts. All counterparts shall collectively constitute a single agreement.

34. Renewal Option.

A. Provided that this Lease is in full force and effect, Tenant is not in default under this Lease, and Tenant has not entered into an Assignment or Subletting that affects more than fifty percent (50%) of the Rentable Area of the Premises, Tenant shall have an option to extend the term of this Lease for one (1) additional successive period of Five (5) years (the "**Renewal Period**"). This renewal option shall be exercisable upon notice from Tenant to Landlord at least twelve (12) calendar months prior to the expiration of the initial Term. In the event that Tenant exercises such option to renew this Lease as set forth in this Section 34, the Term shall be extended accordingly upon the same terms, covenants and conditions as set forth in this Lease, except that Basic Rent during the Renewal Period and the amount by which Basic Rent shall be subject to escalation during the Renewal Period shall be determined pursuant to the following provisions of this Section 34.

B. Effective as of the commencement of the Renewal Period, certain economic terms of this Lease (hereinafter collectively referred to as the "**Renewal Economic Terms**" and individually as an "**Renewal Economic Term**") shall be adjusted as follows: (i) Basic Rent for the first Lease Year of the Renewal Period shall be adjusted to equal the Fair Market Rent (as defined below) for the Premises; and (ii) the amount by which Basic Rent is escalated during each subsequent Lease Year of the Renewal Period shall be adjusted to equal the Fair Market Escalation Rate (as defined below). The term "**Fair Market Rent**" shall mean the prevailing base rent being offered by landlords and accepted by tenants as of the commencement of the Renewal Period for leases with premises of comparable size as the Premises in buildings located in the Virginia Route 28 South/Chantilly submarket of similar quality as the Building, taking into consideration such relevant factors as the base year for Operating Expenses and Real Estate Taxes, size, caliber and financial standing of Tenant, size and floor level of the premises, the location of the building, the level, quality or extent of then-existing tenant improvements and the then-prevailing market rate concessions being offered by landlords and accepted by tenants, including tenant improvement allowances or refurbishment allowances, any free rent, but expressly excluding moving expenses and other concessions that would not be applicable to existing tenants. The term "**Fair Market Escalation Rate**" shall mean the prevailing escalation rates applicable to base rent being offered by landlords and accepted by tenants as of the commencement of the Renewal Period for leases with premises of comparable size as the Premises in buildings located in the Virginia Route 28 South/Chantilly submarket of similar quality as the Building. Notwithstanding anything to the contrary set forth in this Lease, Landlord shall have no obligation to pay any brokerage commissions to the Leasing Broker or others for or in connection with the exercise by Tenant of its rights to renew this Lease pursuant to this Section 34.

C. If Tenant exercises its option to renew as provided above in this Section 34, Landlord and Tenant shall have a period of ten (10) days after Tenant's exercise of such

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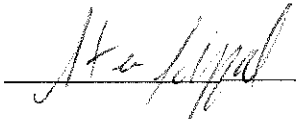
renewal option to agree upon the Renewal Economic Terms. Each of Tenant and Landlord shall use commercially reasonable efforts to reach an agreement upon the Renewal Economic Terms within such 10-day period. If Landlord and Tenant fail to reach agreement on the Renewal Economic Terms within this ten (10) day period, then the Renewal Economic Terms shall be determined by three (3) licensed real estate brokers, one of whom shall be named by Landlord, one of whom shall be named by Tenant, and the third of whom shall be selected by the brokers chosen by Landlord and by Tenant. Each such broker shall be a real estate broker licensed in the Commonwealth of Virginia, specializing in commercial office leasing in Fairfax County, Virginia, with not less than five (5) years' experience as a licensed broker and recognized as reputable within the local real estate industry (each such broker being defined herein as a "Qualified Broker" and collectively as "Qualified Brokers"). Landlord and Tenant each agree to select their respective Qualified Broker within ten (10) days after the expiration of the aforesaid 30-day period. The third Qualified Broker shall be selected within ten (10) days after the first two Qualified Brokers have been selected. If a party fails to timely select a Qualified Broker, the determination of the Renewal Economic Terms for the Renewal Period shall be made by the Qualified Broker selected by the other party. Within fifteen (15) days after the third Qualified Broker has been selected, all of the Qualified Brokers shall meet to attempt to agree upon the Renewal Economic Terms for the Renewal Period. If the Qualified Brokers are unable to reach agreement, each Qualified Broker shall, within fifteen (15) days after the expiration of the preceding fifteen (15) day period, submit to Landlord and Tenant in writing the Renewal Economic Terms he or she deems appropriate and the Renewal Economic Terms shall be, with respect to each Renewal Economic Term, the amount which is the mean between the closest two of such Renewal Economic Term as determined by the Qualified Brokers. Each of the parties to this Lease shall pay the costs of the services of the Qualified Broker selected by that party, and the cost of the services of the third Qualified Broker shall be divided equally between Landlord and Tenant. After the Renewal Economic Terms are determined as herein provided, the parties shall within ten (10) Business Days execute an amendment to this Lease setting forth the Renewal Economic Terms for the Renewal Period.

D. The renewal option set forth in this Section 34 shall be personal to the party named herein as Tenant.

[Signatures Begin on Following Page.]

IN WITNESS WHEREOF, Landlord and Tenant have caused this Lease to be signed under seal, with the specific intention that this Lease constitute an instrument executed and delivered under seal, by their duly authorized partners or officers as of the day and year first above written.

WITNESS:

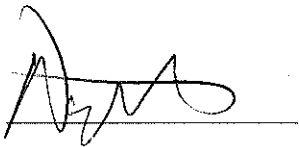


LANDLORD:

AP CHANTILLY MEADOWS LLC,
A Virginia Limited Liability Company

By:  (SEAL)
Charlie B. Betancourt,
Chief Operating Officer

WITNESS:



TENANT:

THE RED GATE GROUP LTD.

By:  (SEAL)
Name: Ernest Benner
Title: Chief Executive Officer

Landlord's Acknowledgement

STATE OF)
) ss:
COUNTY OF)

Before me, a Notary Public in and for the jurisdiction aforesaid, personally came Charles B. Betancourt, whose name is subscribed to the foregoing and annexed Lease, who, being by me first duly sworn, did depose and state that he is the Chief Operating Officer of AP Chantilly Meadows LLC, which entity is a party to the foregoing and annexed Lease, and that he, being duly authorized so to do, executed said Lease on behalf of said entity as its free act and deed for the uses and purposes therein contained.

Witness my hand and official seal this 27 day of March, 2017.

Tiana Fallavollita
Notary Public

[Notarial Seal]



My Commission Expires: 12/31/2018

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Tenant's Initials: _____

Tenant's Acknowledgement

STATE OF)
) ss:
COUNTY OF)

Before me, a Notary Public in and for the jurisdiction aforesaid, personally came Ernest Benner whose name is subscribed to the foregoing and annexed Lease, who, being by me first duly sworn, did depose and state that s/he is the Chief Executive Officer of **The Red Gate Group Ltd.**, a Commonwealth of Virginia corporation, which entity is a party to the foregoing and annexed Lease, and that he, being duly authorized so to do, executed said Lease on behalf of said entity as its free act and deed for the uses and purposes therein contained.

Witness my hand and official seal this 5 day of April, 2017.

Christina Marie Hamluk
Notary Public

[Notarial Seal]

My Commission Expires: Dec 31, 2017

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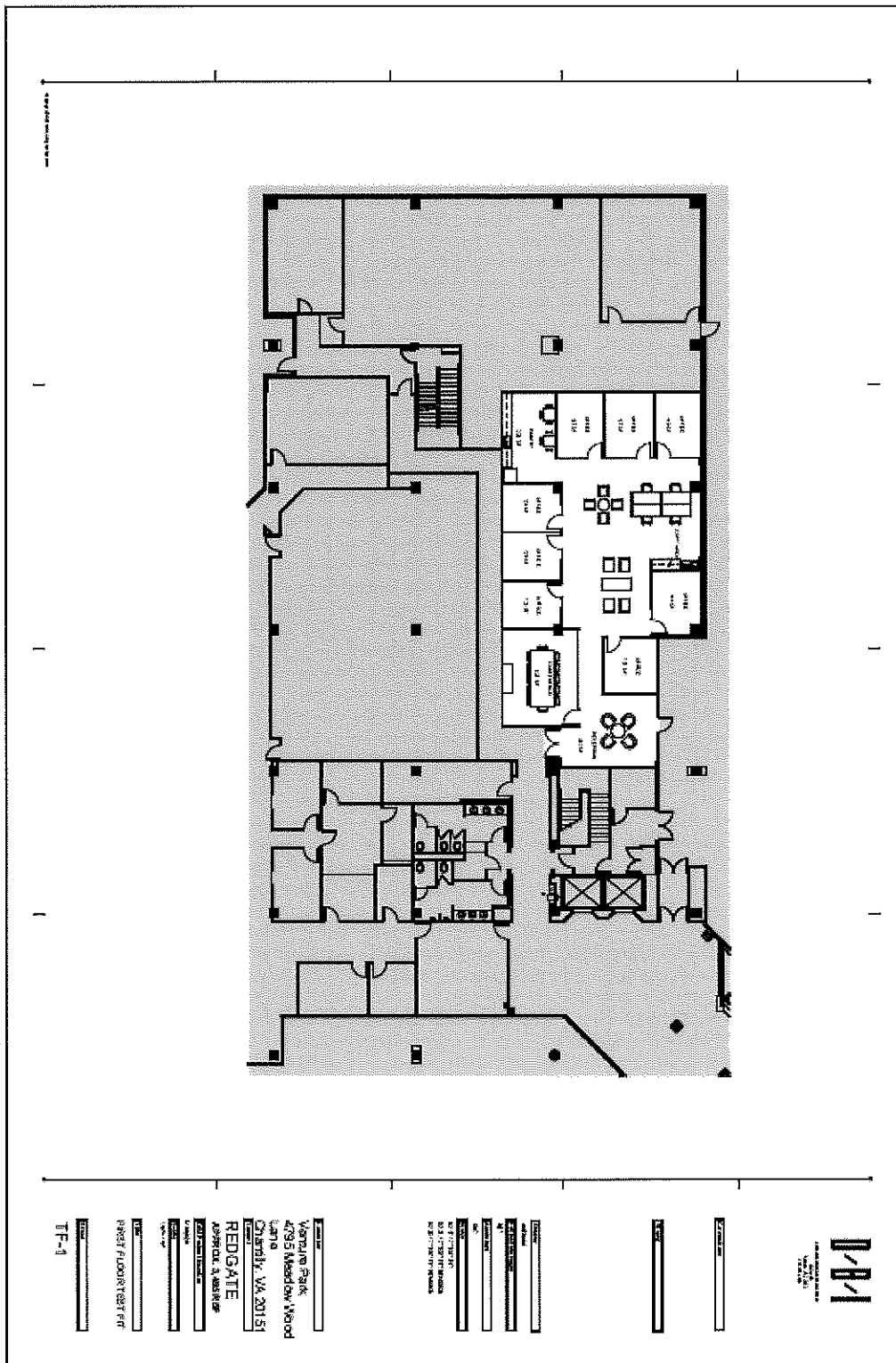
Landlord's Initials: _____
Tenant's Initials: _____

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT A

FLOOR PLAN

[See attached]



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Tenant's Initials: _____

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EXHIBIT B

CERTIFICATE OF ACCEPTANCE

The undersigned having entered into a certain Deed of Lease dated _____ (the "**Deed of Lease**"; the terms used herein have the same meaning as are ascribed to such terms in the Deed of Lease), by and between the undersigned as Tenant and AP Chantilly Meadows LLC, a Virginia limited liability company, as Landlord, DOES HEREBY CERTIFY THAT:

- (1) The Lease Commencement Date is _____;
- (2) Tenant is in possession of the Premises;
- (3) The commencement of the Term is _____ and the expiration of the Term is _____;
- (4) The Lease is in full force and effect without offset or defense;
- (5) The Premises are satisfactory to Tenant, except as follows:
_____;
- (6) The Rentable Area of the Premises is _____ square feet;
- (7) Tenant's Proportionate Share is _____%; and
- (8) The amount of the Basic Rent payable for the First Lease Year is \$_____.

IN WITNESS WHEREOF, I have hereunto set my hand and seal this ____ day of _____, ____.

TENANT:

By: _____ (SEAL)

Name: _____

Title: _____

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Landlord's Initials: _____
Tenant's Initials: _____

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT C

SPECIFICATIONS FOR OFFICE CLEANING

Landlord will furnish janitor and cleaning services as described below for the Premises (including office area, stock rooms, xerox rooms, conference rooms and corridors), which services may be amended or eliminated by Landlord from time to time; provided that, no changes by Landlord in such services shall materially adversely affect the maintenance of the Premises and the Building in a manner befitting a modern rental office building in the Virginia Route 28 South/Chantilly submarket:

I. DAILY:

1. Collect and remove trash. (Private kitchens included.)
2. Empty ash trays; damp wipe clean.
3. Dust furniture, desks, machines, phones, file cabinets, window ledges, etc. (Papers left on desks and books, papers and files on floor will not be disturbed).
4. Vacuum carpet; sweep resilient tile and wood floors. (Private kitchens included.)
5. Wash water fountains.
6. TURN OFF LIGHTS AND CHECK ALL DOORS ON COMPLETION OF WORK.

II. WEEKLY:

1. Spot clean carpet stains.
2. Spot clean walls, doors, partitions.
3. Sweep all stair areas.
4. Dust wood wall paneling.

III. MONTHLY:

1. Scrub and recondition resilient tile floors.
2. Wash all interior glass partitions on both sides.
3. Dust venetian blinds.
4. Dust picture frames, charts, etc.

IV. SEMI-ANNUALLY:

Dust all horizontal and vertical surfaces not reached in nightly cleaning (pipes, light fixtures, door frames, wall hangings, etc.).

V. ANNUALLY:

Strip and refinish all resilient floor areas using buffable, non-slip floor finish.

VI. AS NECESSARY:

1. Clean venetian blinds.
2. Spot clean light switches, doors, and walls.
3. Wash light fixtures including reflectors, globes, diffusers, and trim.
4. Wash walls in corridors, lobbies, conference rooms, demonstration areas and washrooms.
5. Spot clean all baseboards.
6. Wash windows, inside and outside, as required by Landlord.

VII. EXTRAS - CHARGED TO THE TENANT:

1. Daily buffing of hardwood floors in executive office areas.
2. Cleaning of kitchen, canteen, or coffee station areas, including washing sink, washing ledge, cleaning cabinets, and/or appliances.
3. Dusting and sweeping of storage areas, closets, telephone exchange areas.
4. Cleaning of shower stalls, jacuzzis, or other similar non-standard equipment included in restrooms.

Should Tenant install specialty items, which will increase in any way the rate being charged by the cleaning contractor for the Premises, Tenant shall be liable for such increases and will reimburse Landlord for any additional cost.

All of the above services are to be performed during those hours which are established between Landlord and the cleaning contractor. Any special cleaning requests are to be in writing and delivered to the management office by 3:00 p.m.

VIII. REST ROOM AREAS:

DAILY:

1. Collect and remove all trash containers.
2. Clean all lavatory fixtures.
3. Sinks, toilet bowls, and urinals to be sanitized and kept free of scale at all times.
4. Wash and sanitize underside and tops of toilet seats, toilet fixtures, and compartments.
5. Refill soap, towel, and tissue containers, as required.
6. Mop all lavatory floors.
7. Dust all horizontal surfaces as required.
8. Empty, clean, and disinfect sanitary napkin disposals.

MONTHLY:

1. Wash down ceramic tile walls and dust compartment partitions.
2. Dust all other surfaces not reached in daily cleaning.

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Tenant's Initials: _____

3. Brush down all vents.

IX. STAIRWELLS:

1. All stairwells will be swept and spot mopped as required.
2. Spot clean walls as required.

X. ENTRANCE LOBBY AREAS:

1. All standard floors swept or vacuumed daily with proper equipment.
2. All other floors cleaned as necessary to maintain building in a first-class condition.
3. Directory boards dusted daily.
4. Ash trays and sand urns emptied and cleaned daily.
5. Water fountains washed daily.
6. All walls spot cleaned as necessary to remove all marks and smudges.
7. All other surfaces and fixtures cleaned as necessary to maintain building in a first-class condition.
8. All lobby glass washed inside and outside as necessary to maintain building in a first-class condition.

XI. ELEVATORS:

1. Elevator carpets vacuumed daily and spot cleaned as necessary.
2. Exterior and interior doors and trim cleaned daily.
3. Cabs cleaned daily.
4. Thresholds cleaned daily.
5. Wash all lights semi-annually.
6. Clean elevator pits as necessary.

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EXHIBIT D

RULES AND REGULATIONS

The following rules and regulations have been formulated for the safety and well-being of all the tenants of the Building. Adherence to these rules and regulations insures that each and every tenant will enjoy a safe and unannoyed occupancy in the Building. Any violation of these rules and regulations by any tenant which continues after notice from Landlord and the expiration of any applicable cure period specified in Section 17 of the Lease shall be sufficient cause for termination, at the option of Landlord, of the tenant's lease.

Landlord shall have the continuing right to amend or eliminate any of these rules and regulations, and also to adopt additional reasonable rules and regulations of like force and effect. Any change of whatsoever nature shall be effective thirty (30) days after delivery of written notice thereof to the Premises.

1. The sidewalks, entrances, passages, courts, elevators, vestibules, stairway corridors or halls or other parts of the Building not occupied by any tenant (hereinafter "**Common Areas**") shall not be obstructed or encumbered by Tenant or used for any purpose other than ingress and egress to and from the Premises. Landlord shall control and operate the Common Areas, and the facilities furnished for the common use of the tenants, for the benefit of tenants generally. Tenant shall not interfere with the use and enjoyment by other tenants of the Common Areas.

2. No awning or other projections shall be attached by Tenant to the outside walls of the Building without the prior written consent of Landlord. No drapes, blinds, shades or screens shall be attached to or hung in, or used in connection with, any window or door of a tenant's premises, without the prior written consent of Landlord. Such awnings, projections, curtains, blinds, screens or other fixtures must be of a quality, type, design and color, and attached in the manner approved by Landlord, which approval shall not be unreasonably withheld.

3. No sign, advertisement, notice or other lettering shall be exhibited, inscribed, painted or affixed by Tenant on any part of the outside of the Premises or the Building or in the Common Areas without prior written consent of Landlord. Landlord may remove any sign, advertisement, notice or other lettering violating the preceding sentence without liability to Tenant and may charge the expense incurred by such removal to the tenant or tenants violating this rule. On multi-tenant floors, all interior signs on the doors and directory tablet shall be inscribed, painted or affixed for each tenant by Landlord, at Landlord's expense, and shall be of a size, color and style reasonably acceptable to Landlord.

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4. No show cases or other articles shall be put in front or affixed to any part of the exterior of the Building, or placed in the Common Areas.

5. The water and wash closets and other plumbing fixtures shall not be used for any purposes other than those for which they were constructed, and no sweepings, rubbish, rags, or other substances shall be thrown therein. All damages resulting from any misuse of the fixtures shall be borne by the tenant, who, or whose employees, agents, visitors or licensees, shall have caused the same.

6. Tenant shall not construct, maintain, use or operate within the Premises or elsewhere within or on the outside of the Building, any electrical device, wiring or apparatus in connection with a loud speaker system or other sound system. Landlord, will, however, permit Tenant to install muzak or other internal music system within the Premises if the music system cannot be heard outside of the Premises.

7. Tenant shall not make or permit to be made, any disturbing noises or disturb or interfere with other occupants of the Building or neighboring buildings, whether by the use of any musical instrument, radio, tape recorder, whistling, singing, or any other way. Tenant shall not throw anything out of the doors or windows or down the common area corridors or stairs.

8. No bicycles, roller blades, skate boards, vehicles or animals, birds or pets of any kind shall be brought into or kept in the Premises or elsewhere in the Building. No cooking shall be done or permitted by any tenant on its premises, except that, Tenant may install and operate for the convenience of its employees, a lounge or coffee room with microwave oven, sink and refrigerator. Tenant shall not cause or permit any unusual or objectionable odors to originate from its premises which disturb other tenants.

9. Except for space leased to a tenant specifically for storage purposes, no space in or about the Building, including balconies, shall be used for the storage of goods or property of any kind.

10. No space in or about the Building, including balconies, shall be used for the manufacture, storage, or sale at auctions, or merchandise, goods or property of any kinds.

11. No flammable, combustible, toxic, hazardous or explosive fluid, chemical or substance shall be brought or kept upon the Premises, other than customary and usual office supplies which, if properly stored and used, do not pose a significant risk to human health or the environment.

12. No additional locks or bolts of any kind shall be placed upon any of the doors or windows by Tenant, nor shall Tenant make changes in existing door or window locks or the mechanism thereof without Landlord's prior consent. The doors leading to the corridors or main halls of multi-tenant floors shall be kept closed during business hours except as they may be used for ingress or egress. Tenant shall, upon the termination of its tenancy, return to Landlord all keys used in connection with the Premises, including any keys to the Premises, to rooms and offices within the Premises, to storage rooms and closets, to cabinets and other built-in furniture, and to toilet rooms, whether or not such keys were furnished by Landlord or procured by Tenant. On

termination of the Lease, Tenant shall disclose to Landlord the combination of all locks for safes, safe cabinets, and vault doors, if any, remaining in the Premises.

13. All removals, or the carrying in or out of any safes, freight, furniture or bulky matter of any description must take place on specified elevators, in such manner and during such hours as Landlord may reasonably require. Hand trucks may be used only if they are equipped with rubber tires and side guards. Landlord reserves the right to inspect all freight to be brought into the Building and to exclude from the Building all freight which violates any of these Rules and Regulations or the Lease.

14. Any person employed by Tenant to do janitorial work within the Premises shall, while in the Building and outside of the Premises, be instructed by Tenant to comply with all reasonable instructions issued by the superintendent of the Building.

15. Tenant shall not purchase spring water, ice, coffee, soft drinks, towels, or other like merchandise or service from any company or person for delivery by seller to the Premises if such person's repeated violations of Building regulations have caused, in Landlord's reasonable opinion, a hazard or nuisance to the Building and/or its occupants.

16. Landlord may prohibit any advertising by Tenant which, in Landlord's reasonable opinion, tends to impair the reputation of the Building or its desirability as a Building for offices, and upon notice from Landlord, Tenant shall refrain from or discontinue such advertising.

17. Landlord reserves the right to exclude from the Building at all times any visitor who is not known or does not properly identify himself to the Building management or its agents. Landlord may require all visitors admitted to or leaving the Building to register. Landlord shall also have the right to install an electronic access control system for the Building requiring the use of identification cards, passwords, confidential codes and the like as a prerequisite to admission of any person into the Building, except for Tenant's invitees during normal business hours. If identification cards are used in any such system, each tenant shall be issued a reasonable number of cards without charge, but each additional or replacement card requested shall be issued only upon the payment of Landlord's actual cost for each additional or replacement access control card.

18. Each tenant, before closing and leaving its premises at any time, shall see that all lights, electrical appliances and mechanical equipment are turned off.

19. The requirements of Tenant will be attended to only upon telephone call to the office of the Building Property Manager. Building employees shall not be required to perform any work or do anything outside of their regular duties, unless under special instruction from the management of the Building.

20. Canvassing, soliciting and peddling in the Building are prohibited and Tenant shall cooperate to prevent the same, including notifying Landlord when and if such activity occurs.

21. No water cooler or plumbing fixture shall be installed by the tenant without Landlord's prior written consent, which consent shall not be unreasonably withheld.

22. Mats, trash or other objects shall not be placed by Tenant in the public corridors.

23. There shall not be used in any space, or in the public halls of the Building, either by any tenant or by jobbers or others, in the delivery or receipt of merchandise, any hand trucks, except those equipped with rubber tires and side guards.

24. Floor receptacles to underfloor conduits shall be left exposed. Where carpet is installed carpet shall be cut around floor receptacles.

25. All office equipment of any electrical or mechanical nature shall be placed by Tenant in approved settings to absorb or prevent any vibration or noise transmitted outside the Premises.

26. No tenant shall permit or cause to be used in its premises any device or instrument such as a sound reproduction system, or excessively bright, changing, flashing, flickering, moving lights or lighting devices or any similar devices, the effect of which shall be audible or visible beyond the confines of its premises, nor shall any tenant permit any act or thing upon its premises disturbing to normal sensibilities of other tenants.

27. Tenant shall not knowingly permit the Premises to be used for immoral or illegal purposes.

28. All moving of safes, freight, furniture or bulky matter of any description, to or from the Premises shall only take place on specified elevators and during the hours designated by Landlord. Hand trucks may be used only if they are equipped with rubber tires and side guards.

29. Landlord may, from time to time, to designate specific parking spaces in the parking areas for the Building as being reserved for specific tenants or for members of the general public, and each tenant agrees to honor such reservations and to permit parking for officers and employees only in those parking spaces available for such purposes. Tenant agrees to comply with all rules and regulations established for the parking operations. Landlord will not be liable for damage to vehicles in the parking areas, or for theft of vehicles, personal property from vehicles, or equipment of vehicles.

30. Landlord reserves the right at any time to take one elevator out of service to Tenants for exclusive use by the Building management in servicing the Building.

31. No Tenant shall (1) place a load on any floor exceeding the floor load per square foot which such floor was designed to carry in accordance with the plans and specifications of the Building; (2) install, operate or maintain in the Premises any heavy item of equipment except in such manner as to achieve a proper distribution of weight; (3) strip, overload, damage or deface the Premises, or the hallways, stairways, elevators, parking facilities or other public areas of the Building, or the fixtures therein or used therewith; (4) move any furniture or equipment into or out of the Premises except at such times as Landlord may from time to time designate; (5) use

any floor adhesive in the installation of any carpeting; (6) install any equipment of any kind or nature which will or may necessitate any changes, replacements or additions to, or in the use of, the water, heating, plumbing, air-conditioning, electrical or other system of the Premises or the Building, without first obtaining the express written consent of Landlord therefor.

32. Except as otherwise approved by Landlord, smoking is not permitted anywhere within the common areas of the Building, and only in designated smoking areas located outside of the Building.

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT E

ESTOPPEL CERTIFICATE

To: _____
("Lender")

and

("Landlord")

Re: Deed of Lease dated _____ (the "Lease") by and between
_____ and Landlord, for approximately
_____ rentable square feet (the "Premises") at an office building located at
_____ (the "Building")

Gentlemen:

As the tenant under the Lease, the undersigned ("Tenant") hereby acknowledges that Lender has, or is about to make, a loan (the "Loan") to Landlord in the maximum principal amount of \$ _____. The Loan will be secured by (i) a deed of trust affecting the Building, and (ii) an assignment of the Lease to Lender as additional security for the Loan. In connection therewith, we hereby certify to you that:

1. Tenant is the lessee under the Lease, a complete and accurate copy of which is attached hereto and incorporated herein by this reference. The initial term of the Lease commenced on _____ and will expire on _____. The Lease contains _____ (____) option(s) to extend the term of the Lease through _____.
2. The Lease is in full force and effect, and the undersigned has accepted the Premises without exception. All requirements for the commencement and validity of the Lease (including construction work) have been satisfied, and Tenant is presently paying the rentals due under the Lease. The Lease has not been modified, supplemented or amended in any way, except as may be indicated in the caption above. Landlord is not in default under the Lease, and all

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Landlord's Initials: _____
Tenant's Initials: _____

obligations of Landlord for construction work have been fully performed. The Lease is a bona fide lease.

3. Tenant further certifies to Lender that: (a) the current annual basic rent is \$_____ ; (b) Tenant is in possession of the entire Premises and paying the full rentals due under the Lease; (c) the Lease has not been assigned by operation of law or otherwise; (d) neither Tenant nor Landlord is in default under the Lease; (e) Tenant has no existing defenses, offsets, liens, claims, credits or rights of recoupment against the rentals, charges or otherwise which presently exist or have accrued under the Lease; and (f) Tenant has not been granted any option to extend the term of the Lease (other than as set forth above) or expand the Premises, any option to terminate the Lease earlier than the date specified in Paragraph 1 above, any rights of first refusal on any other space at the Building, or any option or right of first refusal to purchase the Premises or the Building.

4. None of the rent which the undersigned is required to pay under the Lease has or will be prepaid more than thirty (30) days in advance, except as specified in the Lease. The undersigned agrees that unless and until it is notified by Lender in writing that rental payments are to be made to Lender because of a default as specified in the terms of any assignment of the Lease to Lender, the undersigned is to continue making rental payments to Landlord, or its successors and assigns, pursuant to the terms of the Lease.

5. The Lease shall not hereafter be modified, amended or terminated without the prior written consent of Lender.

6. Lender, its designee, or any purchaser at foreclosure shall not be responsible for any security deposit not actually received by Lender, if Lender becomes a "mortgagee in possession" or if it forecloses its deed of trust. Lender and its successors and assigns assume no duty, liability or obligation whatsoever under the Lease or any extension or renewal thereof.

7. Lender, its successors and assigns (whether or not they succeed to the interest of Landlord under the Lease), shall not be: (a) liable for any act or omission of Landlord or bound to cure any default of Landlord occurring prior to the time that Lender succeeds to Landlord's interest in the Lease; (b) subject to any offsets, defenses or rights of recoupment which Tenant might have as to Landlord; (c) bound by any payment of rent made by Tenant more than thirty (30) days in advance of its due date; (d) bound by any amendments or modifications of the Lease entered into after the earlier of: (i) the date of this Estoppel Certificate, or (ii) the date that this Lease has been collaterally assigned to Lender, unless Lender has consented thereto in writing; or (e) bound by any assignments of the Lease or sublettings of the Premises entered into after the earlier of: (i) the date of this Estoppel Certificate, or (ii) the date that this Lease has been collaterally assigned to Lender, unless Lender has consented thereto in writing.

8. Prior to exercising any right the undersigned may have under the Lease or at law to terminate the Lease or to make any expenditures under the Lease for the account of Landlord, as a result of Landlord's failing to perform any of Landlord's obligations under the Lease, the undersigned will give Lender written notice of Landlord's default in its obligations under the Lease (which written notice will specify such default or defaults in reasonable detail) and a reasonable period of time after such notice (which period shall be no less than 60 days), with allowance for delays caused by events beyond Lender's reasonable control, within which to undertake and complete the performance of such obligations of Landlord under the Lease.

9. This Estoppel Certificate shall run to the addressees and their respective successors and assigns in interest.

10. The undersigned is authorized to execute this Estoppel Certificate on behalf of Tenant.

IN WITNESS WHEREOF, intending to be legally bound, and intending that this instrument constitute an instrument executed and delivered under seal, the undersigned Tenant has executed this Estoppel Certificate under seal as its free act and deed for the uses and purposes herein contained as of _____, _____.

TENANT:

By: _____ (SEAL)

Name: _____

Title: _____

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT F

COMPLETION SCHEDULE

<u>Action</u>	<u>Start Date</u>	<u>End Date</u>
Tenant Approves Space Layout		3/23/2017
Tenant Approves Lighting Plan		3/23/2017
Tenant Approves Finishes	3/23/2017	3/30/2017
Tenant Approves Working Drawings	4/13/2017	4/15/2017
Permit Approval	4/15/2017	5/15/2017
Landlord Construction	5/15/2017	7/14/2017
Tenant Telecom	6/25/2017	6/27/2017
Tenant Move In	7/15/2017	7/16/2017

4795 Meadow Wood Lane
_____, 2017
AP Chantilly Meadows LLC – Red Gate Group

Landlord's Initials: _____
Tenant's Initials: _____

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT G

BUILDING STANDARD SPECIFICATIONS

Walls:	Demising Walls (non- fire rated) - Full height 2 1/2" steel studs at 16" o.c. with 5/8" drywall full height both sides and 1 1/2" batt sound insulation. Additional layer of drywall between fitness center. Demising Wall (1 hour fire-rated) - Full height 2 1/2" steel studs at 16" o.c. with 5/8" fire code drywall full height both sides and 1 1/2" batt sound insulation. Interior Partitions - 2 1/8" Steel studs at 16" o.c. from deck to ceiling grid with 5/8" drywall to ceiling grid both sides.
Electrical Outlets and Communication Ports:	Electrical - 2 Two 120V duplex outlets per office. Data - Two ring and string data drops per office. Devices and plates - to match existing.
Ceiling Tile & Grid:	Armstrong, Ultima or equal 2' x 2' Beveled Tegular Ceiling Tiles, Grid -- to match existing
Wall Finish:	Latex Paint, flat finish, Sherwin Williams, single color
Flooring:	Carpet Tile – Mohawk Group, Lees, 24"x24" tile, or equal Base - 4" rubber cove base Resilient Flooring - Armstrong Standard Excelon Vinyl, 12"x12"x1/8" LVT in circulation areas
Core Drills:	Core drills/trenching provided in conference room area with electrical outlets and cabling provided
Millwork	Counter and Cabinets - Plastic laminate cabinets and solid surface counter
Lighting:	2' x 4' Pinnacle ADEO LED, Recessed with Satine Lens 2'x 2' Pinnacle ADEO LED, Recessed with Satine Lens Switching either motion or double-switched as specified by Tenant

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Landlord's Initials: _____
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Plumbing:	Pantry Faucet- Kohler Simplice K-647 or equal Pantry Sink- Elkay LRADQ 2922 4 Faucet hole top mount or equal Landlord to furnish and install garbage disposal Landlord to furnish and install dishwasher Landlord to install Tenant supplied refrigerator/freezer Landlord to provide water lines for ice maker, water filter and coffee machine.
Doors:	<u>Interior Doors</u> 3'-0" X 8'-0" – 1 3/4" solid core wood, premium grade paint at tenant interior doors. <u>Suite Entry</u> Herculite glass door with Rockwood NeoCylinder RM7212 Satin Stainless Steel full height pulls <u>Door/Sidelight Frames</u> Metal knock-down door frames, painted semi-gloss. <u>Hardware</u> Schlage AL –Series: Neptune Lever at tenant interior doors Finish for all door hardware shall be (Satin Chrome) unless otherwise noted
Window Treatment:	To match existing
HVAC:	Distribution and Returns - To match existing
Cabling:	Intentionally Deleted

4795 Meadow Wood Lane
_____, 2017
AP Chantilly Meadows LLC – Red Gate Group

Landlord's Initials: ____
Tenant's Initials: ____

(4795 MEADOW WOOD LANE, CHANTILLY, FAIRFAX COUNTY, VIRGINIA)

EXHIBIT H

FINISH NOTES

Exhibit H

Finish Notes Associated with Exhibit A Space Plan

Finishes and Millwork

1. Throughout suite: provide and install new low VOC paint. (eggshell finish on partitions and semi-gloss on doors) Tenant's choice of standard colors of paint.
2. At Pantry and Reception area: Provide and install new luxury vinyl tile and vinyl cove base.
3. Provide and install new carpet tile or broadloom.
4. Pantry: Provide and install building standard Standard Excelon Vinyl tile (12x12)
5. At Pantry: Provide and install plastic laminate upper and lower cabinets with solid surface (or equal) countertop. Provide plywood backing and electrical to receive Tenant provided television and mount.
6. Copy Area: Provide and install plastic laminate lower cabinets and with solid surface countertop. Plywood backing to receive Tenant provided television and television mount.
7. At all offices: Provide and install one wall with accent paint.
8. At Reception Area signage wall: Provide and install accent color paint. Install plywood backing anticipating Tenant supplied wall mount and television, location TBD.
9. At Server / IT: Provide and install one (1) sheet of fire rated plywood mounted horizontal, location TBD.
10. At all main conference room glass: Provide tall frosted film band. (36" AFF)

Ceilings and Lights

11. Throughout suite: Provide and install building standard ceiling tile and grid with building standard 2x2 and 2x4 Pinnacle ADEO LED light fixture, u.o.n.

12. At Conference Room: Provide and install Pinnacle LED dimmable Edge Fixture; 4" x 10' , the length of the table with LED dimmable downlights around the perimeter of the room. (approx. ten (8) fixtures).

Partitions and Doors/Frames and Glass

13. For front entry, provide and install new double 8'-0" tall herculite doors with magnetic lock ready to be interfaced with Tenant provided access control system, (if any) and standard floor locks. Door to have full length push / pull ladder pulls and ADA compliant thumb turn.
14. At partition between offices and conference room: Provide and install sound insulation.
15. At all offices: provide and install 3'-0" x 8'-0" paint grade wood door in aluminum frame with approximately 8" sidelights.
16. At Conference Room: provide and install 3'-0" x 8'-0" single herculite door with full height ladder pulls and patch panels. Provide and install 12' linear feet of glass wall.
17. Demising wall shall be slab to slab sound attenuated partition.

Power / Equipment / HVAC

18. Provide and install "ring and string" receptacles for Tenant's contractor to pull new voice and data cabling throughout. Each location to be prepared to have two (2) Cat5 cables, locations TBD.
19. Provide and install new power throughout. Locations to be identified in lease exhibit.
20. At completion of project, GC shall provide full HVAC balance report.
21. At Conference Room: Provide and install (1) one floor mounted outlet location installed under carpet tiles to receive Tenant's data cabling. Provide conduit from floor mounted outlet to wall mounted television location.
22. At Conference Room: Provide & install in-wall blocking and power as required to support one (1) flat screen television to be provided & installed by tenant and one (1) standard power outlet to receive Tenant provided ceiling suspended projection equipment, if any.
23. At Server / IT: Provide and install an exhaust fan. Electrical outlets at TBD locations for.
24. All HVAC air transfers to be installed between offices. Return air grill to be placed away from desk location.

25. At Pantry: Provide & install ADA compliant sink, faucet, disposal, (1) one microwave, dishwasher, and (1) one full-size refrigerator w/ icemaker. Provide and install cold water line with shut off valves to receive tenant provided coffee maker. Install two duplex outlets at counter top height.

DEED OF LEASE

**AP CHANTILLY MEADOWS LLC,
a Commonwealth of Virginia limited liability company**

LANDLORD

and

**THE RED GATE GROUP LTD.,
a Commonwealth of Virginia Corporation,**

TENANT

**4795 Meadow Wood Lane,
Chantilly, Fairfax County, Virginia**

Date: _____, 2017

4795 Meadow Wood Lane
_____, 2017
AP Chantilly Meadows LLC – Red Gate Group

Landlord's Initials: _____
Tenant's Initials: _____

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